

# **Social Security, Claimed On Purpose**

*The 2027 Decision Guide: Age, Spouse, Survivor, and the Rules That Actually Change Your Check*

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# The Legal Pad

A legal pad on a kitchen table can make a hard decision look like arithmetic. Two columns. A coffee ring in the corner. One age on the left, another on the right. The numbers matter. They are not the whole decision.

I've sat at that table more than once, with someone I love, trying to turn a life decision into a number we could both live with. It never quite works that way. Every answer on that pad depends on things the pad can't hold — how much income you need now, what happens to the person left behind, how much certainty is worth compared to how much money.

I tell you that because I don't want you to think this book is going to hand you a single correct age. It isn't. Social Security's claiming rules will tell you exactly what each age does to the number on your check. They will not tell you what to do with your one life, and neither will I.

## Two questions, before any of the rules

I taught civics for 34 years in a Cumberland County high school, which means I spent three decades untangling fine print for teenagers who didn't want to hear it. That habit didn't retire when I did. So before we get into full retirement age, spousal rules, the earnings test or any of it, let me put two questions on the board, because every answer in this book runs through them.

1. What do you need this money for, starting the month you claim it?

2. If you go first, or your spouse does, what happens to the survivor's check?

The first question is about your own finances today: can you cover your bills without claiming, or does the household need the income now? The second question is about the person left behind, and it's the one I've watched people skip, because nobody likes doing that arithmetic at a kitchen table. I'll come back to it in Chapter 14, and I'd rather you know now that it's coming than have it surprise you nine chapters in.

Chapter 15 separates the earnings test from the tax rules, because they are two different ways work can affect your check.

## **Why this book labels every number by year**

Now the part I'd rather tell you on page two than have you discover on page eighty.

Every fall, the Social Security Administration announces the next year's Cost-of-Living Adjustment, the new earnings-test limits, and the new taxable maximum — the ceiling on wages subject to Social Security tax. SSA publishes the current COLA, earnings-test limits, and taxable maximum at [ssa.gov/cola](https://ssa.gov/cola). Before you file, check that page and use the figures for the year you will receive benefits. This book labels every figure by year and does not ask you to rely on a forecast.

What doesn't move with the calendar is the structure underneath the dollars. Full retirement age is still calculated the same way it was calculated last year. The math behind an early claim or a delayed one hasn't changed. Learn the structure here. Check the dollars at the source before you file.

## Where your own numbers come from

Everything in this book is a rule. None of it is your number.

Your number lives in one place, and that place is your earnings record at the Social Security Administration. You get to it through a free my Social Security account at [ssa.gov/myaccount](https://ssa.gov/myaccount). Set one up before you reach Chapter 10, because nearly every worksheet in this book asks you to write down something only that account can tell you.

Inside it is your Social Security Statement. SSA says the redesigned Statement shows a bar graph of your personalized retirement estimates at nine different starting ages, your earnings history, and instructions on how to report an error if you find one. SSA also says it mails a paper Statement three months before the birthday of workers 60 and older who don't have an online account. If one of those envelopes has been arriving and going straight into a drawer, go dig it out.

Read the earnings history line by line. Not the total at the bottom. The years.

You're looking for a year that shows nothing when you know you worked, a year that looks too small, work under a name you no longer use, or a self-employment year you filed late. Those lines feed the benefit calculation, so an error there follows you into every chapter that comes after this one. SSA's own Statement tells you how to report one. Do it sooner rather than later: old records are harder to reconstruct, and the employer who could have confirmed a 1986 paycheck may not be in business anymore.

Once the record looks right, use SSA's calculators rather than arithmetic of your own. The agency's Benefit Calculators page at [ssa.gov/benefits/calculators](https://ssa.gov/benefits/calculators) lists several, and they do different jobs. The Retirement Age Calculator tells you your full retirement age. The Early or Late Retirement Calculator shows what filing early or delaying does to the amount. The Earnings Test Calculator is for

someone working while receiving benefits this year. The Benefits for Spouses Calculator handles early claiming on a spouse's record. SSA notes that the Quick Calculator and the Online Calculator don't access your record at all, so whatever comes out of those is only as good as what you typed into them.

Here's my rule, and I'd ask you to adopt it. SSA supplies the numbers. This book supplies what the numbers mean. You won't find an estimate of your monthly check anywhere in these pages, and I'd be careful with anyone who offers you one without looking at your record first.

## **These rules don't sit in separate rooms**

The chapters are separate. Your life isn't.

Whether you're married, how long you were married to someone you're no longer married to, whether you're still working, and whether you expect to outlive your spouse or be outlived by them — those facts reach across the chapter divisions and change each other's answers. A decision that looks right when you read Chapter 10 on its own can look different after Chapter 14.

Three places where that happens, so you'll recognize them when they arrive. The age you claim your own retirement benefit can affect what a surviving spouse receives later, which is why Chapter 14 exists and why I asked you the survivor question up front. Work before full retirement age interacts with what SSA actually pays you in those months, covered in Chapter 15, and separately with how much of your benefit gets taxed, covered in Chapter 16. And a marriage that ended in divorce can still matter to your benefit, under rules that differ depending on whether your ex-spouse is living or has died, which is why Chapters 13 and 14 are two chapters instead of one.

Those crossings are the reason I'd ask you to read every chapter that touches your situation before you settle on an age, not after.

## **One piece of this book you won't find restated in full**

If you've also got a Medicare decision ahead of you, that's the subject of a companion book, *Medicare Made Plain*, not this one. I mention it once, here, because the two programs get tangled together in people's minds and the rules are not the same. I'd rather give you one full book than half-cover a second program inside this one. This book stays on Social Security: when to claim, what spouses and survivors are owed, what work and taxes do to the number, and what the repeal of two old pension-offset rules means if it applies to you.

## **The order these chapters follow**

Claiming Social Security isn't one decision wearing different hats. It's a sequence, and I've arranged the chapters the way a real person actually runs into these questions, not the order a glossary would put them in.

We start with full retirement age and the claiming range from 62 to 70, because every other chapter leans on that one. Then the breakeven question, and why it's a starting point for your thinking and not an answer by itself. Then spousal benefits, then the separate and stricter rules for a divorced spouse.

Then survivor and divorced-survivor benefits, which carry their own age table and their own full retirement age — one that isn't always the age you'd expect. Then we cover work before full retirement age and the later recalculation for months benefits were withheld. It is not an immediate dollar-for-dollar refund. Then the

Cost-of-Living Adjustment and how your benefit gets taxed. People often fold those two into one mechanism. They aren't.

Then the Social Security Fairness Act, which repealed two rules that used to cut benefits for people with a pension from work that didn't pay into Social Security — the Windfall Elimination Provision and the Government Pension Offset. Teaching careers were among the jobs affected. If you or your spouse spent years in one of those jobs, that chapter is worth reading.

Every chapter that deals with a real decision ends with a worksheet or a checklist built to be written on, not admired. Chapter 90 lists every figure this book used, with its source and its year. Chapter 99 is short, on purpose, because by then you won't need another summary from me — you'll need to go set up your own my Social Security account and look at your actual numbers instead of mine.

## **When to put the book down and call someone**

I taught school. I am not a financial planner, a tax preparer, or a benefits counselor, and I'd think less of myself for pretending otherwise. Most of what's in here you can handle with a pencil and an afternoon. Some of it you shouldn't.

Call SSA directly at 1-800-772-1213, or make an appointment at an office, when the problem is your record rather than your decision. A missing or wrong year of earnings. A name change that never caught up with your file. A question about whether a particular job paid into Social Security. Anything about an ex-spouse's or a late spouse's record that you can't verify yourself. SSA is the only office that can see those files and the only one that can fix them. Nobody else's spreadsheet can.

Bring in a paid professional when the decision has a survivor in it, a non-covered pension, or a tax year that's already crowded. By

professional I mean a CPA, or a fee-only financial planner who charges you for advice rather than for a product.

Four situations that qualify. One spouse is in poor health, and the claiming order will set what the other one lives on for years. You or your spouse earned a pension from a job outside the Social Security system. Your claim lands in the same year as a large retirement-account withdrawal or the sale of a house. Or you're already widowed and choosing between a survivor benefit and your own.

The reason isn't that the rules are too hard to read. It's that those decisions are hard to undo. A survivor benefit calculated from a claim made years earlier doesn't care how reasonable the claim looked at the time.

Ask what the advice costs before you take it. And be careful with free advice from anyone who earns a commission on what you do next.

## **What this book won't do**

This book gives you the rules and the questions. SSA still has to confirm your own record.

No single age is right for everyone. No rule is fixed forever either. Congress proves that from time to time, most recently with the Social Security Fairness Act's repeal of two pension-offset rules; Chapter 17 covers that repeal and tells you where to check SSA's current implementation information.

What this book will do is put the rules in the order you'll meet them, label each figure with its year, and tell you when to confirm the current amount at SSA before acting. Whatever age you land on, you'll land on it on purpose, with the numbers in front of you, instead of by accident, or by whatever your brother-in-law heard somewhere.

Get a pencil. The legal pad part is next.

## **Chapter 10: Full Retirement Age Isn't 65**

More people say this to me than any other sentence about Social Security: “I’ll take mine at 65.”

They say it the way you’d state your own address. No hedging. And for a long stretch of American life they’d have been right, because 65 was the age the program used for an unreduced retirement benefit, and 65 is still the age people picture when they picture retiring.

Then Congress moved it, and most of the country never got the memo.

Your full retirement age is the age at which Social Security will pay you the whole benefit your earnings record has built. Not a dollar more, not a dollar less. Claim before it and the monthly amount drops by a set percentage. Claim after it and the amount climbs by a set percentage.

For your own retirement benefit, age-based reductions and delayed credits are measured from retirement full retirement age. Survivor benefits use a separate full retirement age, covered in Chapter 14, and the timing rules for family benefits don’t simply copy the retirement rules either. So when I say “full retirement age” in this chapter and the next, I mean the retirement one, on your own record, and nothing else.

That date is probably not your 65th birthday. So we start here.

## Where 65 went

SSA says it plainly on its Retirement Age Calculator page: full retirement age, also called normal retirement age, was 65 for many years, and in 1983 Congress passed a law to gradually raise it because people are living longer and are generally healthier in older age. The increase began with people born in 1938, paused at 66 for those born from 1943 through 1954, then rose again to 67 for people born in 1960 or later.

The slow laws are the ones nobody argues about. A change that lands all at once gets protests. A change that arrives two months at a time can remain unnoticed for decades.

Two things did not change in 1983, and both matter to you.

The first: 62 is still the earliest month you can start a retirement benefit. SSA states on that same page that the earliest age for retirement benefits remains 62. The second: 65 is still the Medicare age, which is the real reason the old number keeps its grip on people. That is a different program on a different clock, and this book stays on Social Security.

Two separate programs. Two separate ages. One birthday that used to cover both.

## Find yours before you read another page

Here is the table from SSA's "Starting Your Retirement Benefits Early" page, which is the official list and the one I'd want you reading over my shoulder. Find your birth year.

- Born 1943 through 1954: full retirement age 66
- Born 1955: 66 and 2 months
- Born 1956: 66 and 4 months
- Born 1957: 66 and 6 months
- Born 1958: 66 and 8 months

- Born 1959: 66 and 10 months
- Born 1960 or later: 67

Write it down. Not the year — the year and the months, because those months are real money and I’ve watched people round them away.

Two wrinkles from SSA’s own footnotes, and they catch people.

If you were born on January 1 of any year, SSA figures your full retirement age using the previous year. Someone born on New Year’s Day 1960 is treated as a 1959 birth, so their full retirement age is 66 and 10 months, not 67. A hair’s difference in the hospital, two months’ difference in the rule.

And if you were born on the first of any month, SSA figures your benefit and your full retirement age as though your birthday fell in the previous month. There’s also an administrative rule worth knowing: SSA says you must be at least 62 for an entire month to receive benefits. For most birth dates, that means the first possible benefit month begins after your 62nd birthday month, so use SSA’s calculator for your exact date rather than counting on the birthday itself.

If your birth date sits on one of those boundaries, or if the date in SSA’s file isn’t the date on your birth certificate, call SSA at 1-800-772-1213 and get it settled before you plan around a number. That is a records question, and SSA is the only office that can answer it.

## **What claiming at 62 costs, for good**

Now the part that gets glossed over in every kitchen-table conversation I’ve been part of.

An early-claim reduction is usually lasting for the months you actually get paid. It is not a temporary discount that quietly catches up at full retirement age. Later chapters cover the limited exceptions,

including credit for months withheld under the earnings test, withdrawing an application within SSA's deadline, and voluntary suspension after full retirement age. None of those is a general escape hatch, and the plain assumption to plan on is that the reduction stays. Your benefit will still get cost-of-living adjustments, which I cover in Chapter 16, but those adjustments apply to the reduced amount for as long as you draw the benefit.

Here's what SSA's chart shows a worker loses at 62, by birth year, against the full amount:

- Full retirement age 66 (born 1943-1954): about 25 percent less
- 66 and 2 months (1955): about 25.83 percent less
- 66 and 4 months (1956): about 26.67 percent less
- 66 and 6 months (1957): about 27.50 percent less
- 66 and 8 months (1958): about 28.33 percent less
- 66 and 10 months (1959): about 29.17 percent less
- 67 (1960 or later): about 30 percent less

SSA notes those percentages are approximate due to rounding, and I'd take the agency at its word rather than treating the third decimal place as gospel.

Put a number on it, since percentages slide off the page. SSA illustrates its chart with a \$1,000 monthly benefit at full retirement age. A worker whose full retirement age is 67, claiming at 62, gets \$700 of that \$1,000. Not \$700 for a while. \$700, plus whatever the cost-of-living adjustments add on top of \$700, for the rest of their life. And in some situations for the rest of a surviving spouse's life, which is why Chapter 14 exists.

Notice how little the loss varies. Whether you were born in 1952 or 1962, filing at 62 costs you somewhere between a quarter and a third of the monthly check. The reason is mechanical: the reduction is applied per month of early claiming, so as full retirement age rose,

the number of early months rose with it. SSA's chart counts 48 months between 62 and a full retirement age of 66, and 60 months between 62 and 67.

The reduction is mechanical; paying in for forty years does not change the percentage.

## **What waiting buys**

Past your full retirement age, the arithmetic runs the other direction, and this is the part of the program I find genuinely generous.

SSA calls them delayed retirement credits. For anyone born in 1943 or later, the credit is 8 percent per year, or two-thirds of 1 percent for each month you delay beyond full retirement age. The increase stops at 70. Not "mostly stops." Stops. No additional delayed credit accrues after 70, and filing later than 70 can forfeit months beyond SSA's limited retroactive window.

So the full span of the decision, for someone with a full retirement age of 67, runs from about 70 percent of their full benefit at 62 to 124 percent at 70. The 70-year-old's check is roughly three-quarters larger than the 62-year-old's, on the same earnings record, for no reason other than the month the paperwork went in.

Three practical notes SSA publishes that tend to surface only after someone has already filed.

If you start benefits after full retirement age but before 70, some of your delayed retirement credits won't show up right away. SSA's example: a person whose full retirement age is 67 files at 69. The initial amount reflects credits earned through the year before that 69th birthday. Those credits raise the ongoing amount effective the following January. Don't assume SSA will issue back pay at the higher rate for the earlier months, and don't be alarmed when the first deposit looks smaller than the arithmetic promised.

Second, once you've reached full retirement age, SSA may allow up to six months of retroactivity, never for a month before full retirement age and never more than six months back. That sounds like a free gift if you've been slow with the paperwork. It isn't. Before age 70, choosing those retroactive months permanently lowers the ongoing amount, because months you're paid for are months that earn no delayed credit. Ask SSA to compare both choices, the lump sum and the later start date, before you elect anything.

Third, the personalized Retirement Calculator inside your my Social Security account will show you estimates at different start dates with credits applied, which is a cleaner way to compare ages than doing the January math yourself.

## **It's a range, not a switch**

Sixty-two or seventy. That's how the conversation usually gets framed, and the framing is wrong.

You can start a retirement benefit in any month from 62 through 70. The reduction and the credit are both calculated monthly, so each month you wait moves the number: two-thirds of 1 percent per month past full retirement age, a smaller fraction per month before it. There is no cliff on a birthday. There is a slope, and you can step off it anywhere.

Which means the real question is narrower and more answerable than "when should I claim." It's "what would it take to wait three more months," and then three more after that. I've seen people who couldn't contemplate waiting eight years find that waiting fourteen months was entirely doable once they looked at what it bought.

The standard advice runs to extremes in both directions, and I think both extremes are badly served. "Take it as soon as you can, before the money runs out" treats a lifetime inflation-adjusted benefit as though it were a bank balance someone might repossess.

“Always wait until 70” ignores people in poor health, people with no other income, and people whose spouse’s record changes the math entirely. Neither slogan has met you.

What I’d ask you to hold onto from this chapter is smaller and harder to argue with. Nearly every month between 62 and 70 is a possible starting month, and each one carries a known price. That price list is published by the agency that will cut the check.

## **Your claiming-range worksheet**

Pull out the pad. This takes ten minutes and it’s the foundation for every chapter after this one.

1. Write your birth month and year. If you were born on January 1, write the previous year beside it and circle it.
2. Write your full retirement age from the list above — the years *and* the months. Confirm it with SSA’s Retirement Age Calculator at [ssa.gov](https://ssa.gov) rather than trusting my list or your memory.
3. Write the exact calendar month and year you reach that age. This is your zero point. Example: born March 15, 1958; full retirement age 66 and 8 months; full retirement age month November 2024.
4. Now rule four columns across the page and head them: start month, your age that month, SSA’s estimate, and the future earnings you assumed. Four columns, because the fourth one is the column people forget and then wonder why the number moved.
5. Fill one row for age 62, one for your full retirement age month, and one for age 70, copying each dollar figure from the Retirement Calculator in your my Social Security account. That calculator asks what you expect to earn between now and your start date; enter a figure you’d actually bet on, write it in column

four, and keep it the same across all your rows so the comparison is honest.

6. Fill one more row for each of three start dates that are plausible for you — not ideal, plausible. Your earliest acceptable, your likely, and your stretch. Run each one through the calculator and copy the estimate.
7. Now use the percentages from earlier in this chapter only as a sanity check, not as your math. If your full retirement age is 67 and the calculator says \$1,000 at 67, the age-62 row should land near a 30 percent reduction, which leaves 70 percent: \$1,000 times 0.70 is \$700. SSA's own chart uses exactly that example. If your own age-62 row is nowhere near that ratio, you've entered something wrong, or your earnings assumption changed between rows.
8. Circle the highest and lowest dollar figures on the page. The gap between them, not the percentages, is the actual size of this decision.

Those three plausible dates are what the rest of this book works on. Chapter 11 takes the breakeven arithmetic to them. Chapters 12 through 14 show how a spouse, an ex-spouse or a survivor can move them. Chapter 15 deals with what happens if you're still working when one of those dates arrives.

One instruction for the dollar columns, and I'll keep repeating it: the only figure worth using is the one from your own record. An estimate from a magazine, a neighbor, or a website that never saw your earnings history is a guess wearing a dollar sign.

Go log into your account and write down the number at your full retirement age. The next chapter does something with it.

## Chapter 11: The Breakeven Question

Joan had already decided. She just hadn't told me yet.

It was a Sunday, and the legal pad was between us with my handwriting on the left side and her handwriting on the right. She was turning 62 that spring. Her position was one sentence long: she had worked since she was nineteen, she wanted the money, and she wanted it while she could still carry a suitcase up a flight of stairs.

Mine took longer to say, which should have been my first clue. I had the percentages copied out of the agency's own pages. I had the gap between the age-62 number and the age-70 number, and the gap was large enough that I kept underlining it. I believed, with the confidence of a man who had never actually filed for anything, that we should both wait until 70.

Somewhere in the second hour she asked me the only question that mattered: "And what year does your pencil say I die?"

I didn't have an answer. The pad didn't either.

### What a breakeven age actually is

Set the argument aside and look at the arithmetic, because the arithmetic is simple and most people have never seen it done.

A breakeven age is the age at which the total money collected from a later claim catches up with the total money collected from an earlier one. That's the whole idea. The early claimer gets a head start of smaller checks. The later claimer gets a bigger check for fewer months. Somewhere out in the future, the running totals cross.

Finding the crossing point takes three numbers and one division.

One: the head start. Multiply the smaller monthly benefit by the number of months the early claimer collects before the later claimer starts.

Two: the monthly gap. Subtract the smaller monthly benefit from the larger one.

Three: divide the head start by the monthly gap. That gives you the number of months, counted from the later start date, that the patient claimer needs in order to catch up.

Let me put it on the board with the agency's own illustration, the \$1,000 monthly benefit at a full retirement age of 67 that I used in the last chapter. At 62 that worker's check is \$700. At 67 it's \$1,000. At 70, with three years of delayed credits at 8 percent a year, it's \$1,240.

Claiming at 62 instead of 67: the head start is 60 months of \$700, which is \$42,000. The monthly gap after 67 is \$300. Divide \$42,000 by \$300 and you get 140 months, which is 11 years and 8 months past 67. The totals cross a few months before that worker's 79th birthday.

Claiming at 67 instead of 70: the head start is 36 months of \$1,000, which is \$36,000. The monthly gap after 70 is \$240. Divide and you get 150 months, 12 and a half years past 70. The totals cross around 82 and a half.

Claiming at 62 instead of 70, the comparison people actually argue about: the head start is 96 months of \$700, or \$67,200. The gap is \$540 a month. Divide and you get a little over 124 months, roughly 10 years and 4 months past 70. The totals cross somewhere in the reader's 81st year.

Three comparisons on one earnings record, and the crossing points land across a four-year spread. There is no single breakeven age for a person. There's a breakeven age for each pair of dates you're comparing, which is the first thing the magazine articles leave out.

## **What I left out of that arithmetic**

Everything I just did is simplified, and I'd rather name the simplifications than let you find them later.

I left out the cost-of-living adjustment, which is applied as a percentage and therefore raises both the small check and the large one. I left out taxes, which can reach some portion of your benefit depending on your other income; that's Chapter 16, and it's a different mechanism from anything in this chapter. I left out the earnings test, which can hold back benefits if you claim early while still working, and which has its own recalculation later; that's Chapter 15. I left out any return you might earn by investing the early checks instead of spending them. I left out the January timing quirk from the last chapter, where some delayed credits don't show up in the monthly amount until the following year.

And I left out the largest variable of all, which is what a spouse's or a survivor's benefit does to the comparison. For a married couple, a breakeven run on one person's record alone can point in a direction the household's actual numbers don't support. Chapters 12 through 14 are where that gets dealt with, and if you're married, widowed or divorced after a long marriage, I'd ask you not to settle on an age until you've read them.

So treat a hand-run breakeven as a rough map, not a survey. It tells you the neighborhood. It does not tell you the lot line.

## **The calculator doesn't know when you'll die**

Here's the uncomfortable center of this whole business, and I don't think it gets said plainly enough.

Every breakeven calculation is a bet on your own date of death. Not a prediction. A bet. If you claim late and die at 74, the early claim would have paid you more. If you claim early and live to 93,

the late claim would have paid you a great deal more. The math is honest about this and the people quoting the math usually aren't.

The agency does publish a Life Expectancy Calculator at [ssa.gov](https://ssa.gov), and it's worth five minutes. But read what it says about itself: it shows the average number of additional years a person can expect to live, based only on the sex and date of birth you enter. Based only on. It doesn't know about your blood pressure, your parents, your cigarettes, or the fact that every woman on your mother's side made it past 90. An average is a statement about a population. You are one person, and you will not die on average.

Which means the useful version of this question isn't actuarial, it's personal. Your own health, honestly assessed. What your family history looks like on both sides. What your physician actually said at your last visit, as opposed to what you told your spouse your physician said. That information is yours, it's better than any table, and it belongs in this decision more than any percentage does.

If your health is genuinely uncertain, that's one of the cases where I'd stop reading and ask someone. Not a stranger with a spreadsheet. A fee-only financial planner or a CPA who will look at your whole picture, charge you for the hour, and tell you what the survivor-adjusted numbers look like.

## **The question I'd ask instead**

Here's my opinion, and it runs against most of what you'll hear.

"When do I break even" is the wrong first question for a lot of people, because it quietly assumes the goal is to collect the most total dollars from the government before you die. That's a reasonable goal if you're planning an estate. It's a strange goal if you're planning a life.

Flip it and ask which risk you'd rather carry.

Claim early and you carry the risk of living a long time on a smaller monthly check. It's an inflation-adjusted check that keeps arriving as long as you do, which is exactly what you want when you're 89 and the retirement account has been drawn down for two decades. The smaller it is, the less it covers in that year.

Claim late and you carry the risk of dying before the bigger check has paid off, having spent down other savings to bridge the gap. Your heirs may inherit less. You may also spend your late sixties with less cash and more worry than you needed to.

Neither risk is the responsible one. They're just different, and the right answer depends on which one would actually hurt your household. A person with a pension, good health and a long-lived family is carrying one kind of exposure. A person in poor health with no other savings is carrying another. Any advice that hands both of them the same age is advice that never met either of them.

The agency says this too, in its own flat way. On its page about what to consider when planning for retirement, it states there is no "best age" for everyone and that the decision is yours, based on your personal situation. Then it lists six things to weigh. Are you still working. What is your life expectancy. Will you still have health insurance. Are you eligible for benefits on someone else's record. Do you have other income to support you if you delay. Will other family members be eligible on your record. Not one of those six is a breakeven calculation. All six are facts about your life.

And one sentence on that page deserves to be read twice. "The benefit amount you first receive sets the base for the amount you will receive the rest of your life."

## **How we settled it**

Joan filed at 62. She has never once regretted it, and she will tell you so without being asked.

I held out. Not to 70, which is what I'd been underlining on the pad, but to 67. I'd like to tell you I arrived there through superior reasoning. What actually happened is that I ran the household numbers with her check already arriving, saw that we didn't need mine yet, and then kept not needing it until a date arrived that I'd already decided I could live with.

The compromise was this: her money started early, which took the pressure off, and that took the pressure off me to start mine. Two decisions that looked like opposites turned out to depend on each other. If she had waited, I would almost certainly have claimed sooner, and we'd have ended up in roughly the same place by a different road.

Was 67 optimal? I don't know. I still don't. If I live to 95 I left money on the table, and if I'd waited to 70 and died at 72 I'd have left a different pile on a different table. What I can tell you is that we chose it in daylight, with the numbers written down, and neither of us has spent a night since wondering what the other one was thinking.

The honest outcome is a claiming age you chose with the household numbers in front of you, knowing what the arithmetic could not settle.

## **Your breakeven worksheet**

Get out the page from the last chapter, the one with your start months, your ages, the estimates from your my Social Security account, and your assumed future earnings. You'll do this once for each pair of dates you're seriously weighing.

1. Pick two rows from that page. Call the earlier one A and the later one B. Most people should run this at least twice: earliest against likely, and likely against stretch.

2. Count the months from A's start month to B's start month. Write the count.
3. Multiply A's monthly estimate by that month count. That's the head start, in dollars. Write it down and look at it for a second, because it's a real number and people who favor waiting tend to wave it away.
4. Subtract A's monthly estimate from B's. That's the monthly gap.
5. Divide line 3 by line 4. The answer is in months. Divide by 12 if you want years.
6. Add that span to B's start age. That's your breakeven age for this pair of dates. Circle it.
7. Repeat for your other pair. Notice that the two answers are different ages, and that neither one is "your breakeven."
8. Now write one more line at the bottom of the page: the age you'd have to reach for waiting to have been worth it, and your honest guess at whether you'll get there.

Keep the arithmetic in today's dollars and don't try to adjust for inflation by hand. You'll introduce more error than you remove. Use your my Social Security estimates as inputs. For taxes, ask a qualified tax professional; for household cash-flow and survivor scenarios, use a fiduciary fee-only planner with Social Security experience, and confirm benefit-entitlement questions with SSA.

## **What the page can't tell you**

Before you act on any circled age, run down this list. If you answer yes to any of the first four, do not use this simple breakeven age by itself. Apply the relevant rules in Chapters 12-15, then compare the revised household scenarios.

- Do you need the income now to cover ordinary bills, without borrowing or selling something you'd rather keep?
- Is there a health condition, in you or your spouse, that a reasonable person would weigh here?
- Does a current spouse, a late spouse or a ten-year marriage that ended in divorce figure in your situation? If so, Chapters 12 through 14 can move your answer, and the survivor question in particular can move it a long way.
- Will you be working between now and the date you're considering? Chapter 15 covers what that does.
- Do you have other income or savings that could carry the household while you delay, and have you checked what drawing them down actually costs you?
- Would the larger check at an older age change how you'd live at 85, or would it just be a larger number?

Six questions, and a breakeven calculator can't answer a single one of them. That's not a failure of the calculator. It's a statement about what kind of decision this is.

Joan's pencil question is still the best one anybody's asked me about Social Security, and I've never been able to answer it. What I could do, eventually, was stop pretending the pad knew something I didn't.

Next we add a second record to the page, because a spouse's earnings can change the household answer.

## **Chapter 12: The Spousal Benefit Is Not Half of Your Spouse's Check**

Add the checks each of you actually qualifies to receive. What you cannot add is your own retirement estimate and a second, full spousal check without asking SSA whether any spousal excess is payable.

A spousal benefit is not a second full retirement check, and it is not automatically half of the deposit your spouse receives. It is a benefit calculated from the worker's record, with its own eligibility rules and its own reduction if you claim before your full retirement age. If you have a retirement benefit on your own record, SSA compares the two; it does not simply stack two whole checks.

Chapter 11 compared start dates using one worker's estimate. Here the household has two records. That changes the questions, not the basic rule from Chapter 10: your own full retirement age still matters.

### **The half-benefit ceiling**

The Social Security Administration says a spouse may receive up to half of the worker's benefit amount at the worker's full retirement age. That amount is sometimes called the worker's primary insurance amount. It is the benchmark SSA uses for the calculation, not necessarily the check currently landing in the worker's bank account.

The distinction matters if the worker claimed early or delayed. The ceiling is based on the worker's full-retirement-age amount;

delayed retirement credits the worker earns by waiting beyond that age do not raise the spouse's maximum to half of the larger delayed check. SSA's Family Benefits page describes the figure as up to half of what the family member would get at full retirement age.

"Up to" is doing useful work in that sentence. It is a ceiling, not a promise that every spouse will receive exactly half. Your age when you start, your own earnings record, and whether you meet the eligibility conditions all affect what SSA pays.

Here is a made-up example, just to show the arithmetic. Suppose the worker's full-retirement-age amount is \$2,400 a month. Half is \$1,200. If the other spouse's own full-retirement-age retirement benefit is \$900, the potential spousal amount at that age is the difference: \$300. The combined retirement payment would be \$1,200 before any adjustments, not \$900 plus a separate \$1,200 check.

If that spouse's own retirement benefit were \$1,350, it would already be higher than the \$1,200 spousal ceiling in this illustration. There would be no additional spousal amount to bring the total up. SSA's Family Benefits page says that when you qualify for other Social Security benefits, it pays the highest amount you are eligible for rather than adding the full payment amounts together.

Those figures are round numbers for explaining the structure. They are not estimates for your record, and they do not account for claiming before full retirement age. For an actual comparison, use the spouse benefit calculator listed on SSA's Benefit Calculators page or ask SSA to estimate both records.

## **The marriage rule, and who can qualify**

For an ordinary current-spouse benefit, SSA says you may be eligible if you have been married for at least one year and are age 62 or older. There is a separate path for a spouse of any age who is caring for the

worker's child who is under 16 or has a disability. The exact conditions matter; "we've been together a long time" is not the same as meeting SSA's marriage and family-benefit rules.

The worker must also be entitled to retirement benefits for a standard retirement-based spousal benefit to be paid on that record. In practical terms, the worker has to apply and become entitled first. If your spouse has not filed, you generally cannot start a current-spouse retirement benefit on that record just because your own claiming age has arrived.

That order can be frustrating for a couple where one person is ready to claim and the other wants to delay. It does not mean the lower-earning spouse must claim their own retirement benefit immediately. It means you should compare the choices using both estimates and understand which benefit, if any, is available before the worker files.

There are exceptions and details that can change the answer, especially when a spouse is caring for a child or has a disability. SSA's "Who Can Get Family Benefits" page lays out the categories, but it cannot resolve a missing date or a disputed earnings record. If your marriage history, the worker's entitlement, or a child's status makes the case less ordinary, contact SSA and ask for an eligibility determination before you build a household budget around the benefit.

## **Claiming early changes your side of the calculation**

The worker's full-retirement-age amount sets the maximum. Your own age when you apply determines how much of that maximum you can receive.

SSA's retirement-age chart shows a spouse's reduced percentages separately from the worker's retirement percentages. Claiming a

spousal benefit before your own full retirement age reduces it. The reduction depends on how many months early you start and on your full retirement age. It is not calculated by taking your spouse's reduced check and cutting that in half.

The same SSA chart makes the difference visible for someone born in 1960 or later, whose full retirement age is 67. At 62, the worker's own benefit is shown as 70 percent of the full-retirement-age amount; the spouse's benefit is shown as 32.5 percent of the worker's full-retirement-age amount. At 67, those examples reach 100 percent and 50 percent, respectively. Those are chart examples for that birth group, not universal percentages. If your birth year differs, use the row SSA gives you rather than borrowing the 32.5 figure.

Return to the made-up \$2,400 worker example. Half is \$1,200 at the spouse's full retirement age. The \$780 is the spouse-only amount at 62 for someone without an own-record benefit; if the spouse also qualifies on their own record, SSA reduces that retirement amount and any excess spousal amount separately. Ask SSA for the combined payment. It would not be \$1,200 simply because the worker's record can support that much at the spouse's full retirement age. This illustration is only to show why both the worker's and the spouse's dates belong on the page; SSA must calculate the amount for your record and start month.

Use the right person's age in the right column. The worker's age determines the worker's full-retirement-age amount. Your age determines the reduction on the spousal benefit. If you and your spouse were born in different years, you may have different full retirement ages; the chart in Chapter 10 is for your own retirement benefit, and SSA's calculator can confirm the applicable dates for each of you.

Waiting until your full retirement age can matter because it avoids the early-claim reduction on the spousal portion. But waiting past

full retirement age does not make the spousal maximum grow the way delayed retirement credits grow a worker's own retirement benefit. The program treats those two amounts differently. Don't assume that waiting to 70 turns a spousal benefit into a larger percentage of your spouse's check. If you started your own retirement benefit early while the worker delayed filing, a later spousal supplement will not erase your earlier retirement reduction; ask SSA to compare the actual dates and both components.

The plain comparison is between the amount available on your own record, the potential spouse amount, and the month you would start. SSA can give you record-specific estimates. Your online Statement is useful for your own retirement estimate, but a spouse's amount depends on both records and entitlement, so don't infer it from your Statement alone.

## **Filing is not a menu of separate checks**

People sometimes remember an old strategy: take a spousal benefit now, leave your own retirement benefit untouched, and let that one grow. Some couples could use a restricted application under earlier rules. It is not a general strategy available to everyone now.

SSA calls the modern rule "deemed filing." If you are eligible for both your own retirement benefit and a spousal benefit, filing for one can count as filing for both. For people born on or after January 2, 1954, deemed filing generally applies when they qualify for both benefits; SSA's filing-rules page describes the dates and exceptions. In that situation, you cannot ordinarily choose only the spousal benefit while deliberately delaying your own retirement benefit.

There are exceptions, including certain benefits connected to caring for a worker's child and disability situations. People born before January 2, 1954 may also fall under different rules if they

meet SSA's conditions. These exceptions are specific, not a loophole to build a plan around from a headline or a neighbor's story.

A worker's claim date is part of the couple's sequence, too. Since the standard spousal benefit depends on the worker being entitled, one spouse filing can make a benefit available to the other. But that does not mean the worker should file early just to unlock a payment. Compare what each person can receive on their own record, what the spousal supplement might add, and whether the worker's decision changes future household income. Chapter 14 will address a different question: what happens to a spouse's options after a death.

A spouse's application does not reduce the worker's own retirement benefit. If children or other family members may also qualify on the worker's record, ask SSA how the family maximum applies to their payments. That is a separate calculation, and it is not a reason to guess at the spousal amount.

## **Two estimates, one household decision**

The useful unit is not "my check" or "your check." Put both records on the page and mark which benefit is available under each possible start date. The number that looks smaller by itself may be supplemented by a spousal amount; the larger personal benefit may mean there is no supplement at all.

If your own record is modest compared with your spouse's, ask SSA for an estimate of the spouse amount at your full retirement age and at the month you are considering. If your own record is stronger, ask whether any excess spousal benefit is payable rather than assuming the answer from the headline figure. If the worker has not applied, ask what would become available if they did, and what that decision would do to both of your estimates.

This is also where a household cash-flow question can be mistaken for an SSA eligibility question. SSA decides whether the

record and dates qualify. A fee-only financial planner can help model how different start dates affect the household's income and savings, but cannot change SSA's entitlement rules. If the calculation depends on an exact marriage date, a prior marriage, disability, or caring for a child, call SSA rather than asking a planner to interpret the record.

## **A second household, run at two start months**

Figures on a page beat a rule you half-remember. So here is a second made-up household, worked at two different start months, using the early-claiming percentages SSA published on the chart from Chapter 10, as they stood when I checked in October 2026.

The higher earner has a full-retirement-age amount of \$3,000. The lower earner was born in 1957, whose row on that chart sets full retirement age at 66 and 6 months, and has an own-record full-retirement-age estimate of \$1,000. Both dollar figures are round for teaching. Neither is an estimate for your record.

Begin with the benchmark. Half of \$3,000 is \$1,500. That ceiling is set by the higher earner's full-retirement-age amount and by nothing else. Subtract the lower earner's own \$1,000 and \$500 is left. That \$500 is the portion SSA would examine as a spousal supplement at the lower earner's full retirement age, sitting on top of their own benefit. The payment to that person in that month would be around \$1,500, not \$1,000 plus a separate \$1,500.

Now move the lower earner's start month back to 62 and watch the two pieces move apart, because this is the step most kitchen tables get wrong.

Their own retirement benefit takes the worker reduction covering 54 early months. SSA's 1957 row shows a \$1,000 full-retirement-age benefit cut by 27.5 percent to \$725 at 62. Applied to our \$1,000, that leaves \$725.

The \$500 supplement takes a different reduction from a different column. The same 1957 row carries a 32.5 percent reduction on the spouse side, and the note under SSA's chart says the spouse percentage is applied after the automatic halving. Take 32.5 percent off \$500 and \$337.50 remains. SSA's own row prints the matching example, showing a \$500 spouse's benefit reduced to \$337 for that birth year, which is the same arithmetic with the agency's rounding. Add the two reduced pieces and this household's lower earner is near \$1,062.50 a month.

Put the two results side by side. About \$1,500 at 66 and 6 months. About \$1,062.50 at 62. The difference is roughly \$437.50 a month, and by the rule from Chapter 10 it does not close later.

Two parts of that arithmetic deserve saying plainly.

The lower earner's own reduction and the supplement's reduction are different percentages drawn from different columns of the same row. Borrowing the worker percentage for both is the fastest way to build an estimate that is too high, and the error survives because the result still looks like a sensible number.

The higher earner's start month does not move the \$1,500 benchmark at all. It moves their own check, and it governs whether the supplement is available yet, which is the entitlement point from earlier in this chapter. A higher earner who waits until 70 does not lift the benchmark to half of the larger check that waiting produces.

## **The order of operations**

If you keep one thing from this chapter, keep the sequence.

Halve the benchmark belonging to whichever of you earned more. Subtract the lower earner's own full-retirement-age amount. If what remains is zero or less, there is no supplement to wait for, and the lower earner is facing a plain own-record start-date choice of the kind Chapter 11 laid out. If what remains is positive, reduce the own

amount and the leftover supplement separately for the lower earner's start month, using that person's birth-year row, then ask SSA to confirm the combined figure before either of you files anything.

That sequence also tells you which question to ask on the phone. A household with no leftover supplement should ask about start months and the earnings test. A household with a leftover supplement should ask whether any excess is payable at the proposed month and what the combined payment would be. Those are different conversations, and knowing which one you are in saves a second call.

Both households in this chapter use whole dollars and ignore the annual cost-of-living adjustment, which Chapter 16 handles. SSA also rounds, so a benefit letter can differ from hand arithmetic by a dollar or two. Rounding is not the risk in this calculation. Using the wrong column, or the wrong person's birth year, is.

Work both start months before you call, even if you are fairly sure which one you want. The gap between them is the only part of this decision that is yours to set.

## **Your spousal-benefit worksheet**

Use this as a request list for my Social Security and an SSA conversation, not as a substitute for SSA's calculation.

1. Write down both birth dates, including month and day. Confirm each person's full retirement age using SSA's Retirement Age Calculator.
2. On separate lines, copy each person's retirement estimate from their own my Social Security account for the same proposed start months. Keep the assumed future earnings consistent.
3. Write the worker's full-retirement-age estimate. Divide it by two to find the maximum spousal benchmark before any reduction.

Label it “maximum benchmark,” not “my payment.”

4. Write the spouse’s own estimated retirement amount at the same age. Ask SSA whether a spousal amount could supplement it, and what the estimated total would be at the spouse’s proposed start month.
5. Note whether the worker has applied and is entitled to retirement benefits. If not, ask what timing options are available and how the worker’s claim date affects access to a current-spouse benefit.
6. Write the marriage date and, if applicable, any relevant child-care or disability facts. If the one-year condition or an exception might apply, have SSA verify eligibility from the records.
7. Ask whether deemed filing applies to you. Give SSA your birth date and say whether you are eligible, or may be eligible, on both your own and your spouse’s records. Do not rely on an old restricted-application example unless SSA confirms it fits your case.
8. Record the representative’s answer, the date, and what you still need to provide. If the number changes when you correct an earnings record or a date, get the estimate again before choosing a start month.

Carry both figures to SSA before you decide which application to file: what your own record pays you, and what extra amount, if any, your spouse’s record can add on top of it. Next comes the rule for a former spouse, where the marriage is counted differently and the worker’s filing date may not control access in the same way.

## **Chapter 13: Ten Years, Not Nine Years and Ten Months**

She came to the house on a Saturday morning with a manila envelope and a question she had already answered wrong in her head. A neighbor had given her my name and, I suspect, an inflated account of what I could do about it.

Inside the envelope was a divorce decree with a county stamp on it, and a marriage certificate that had been folded into quarters for so long the creases had gone soft. She wanted to know how much she could collect on her former husband's record. She had been told it was half. She had a number in mind and she had told her daughter about it.

I asked for the two dates. The marriage certificate said March. The decree said January, almost ten years later. Nine years and ten months.

There is no gentle way to lay that out, so I didn't try. I told her the agency requires a marriage that lasted at least ten years before the divorce became final, and that two months short is short. She asked whether anyone could round it. Nobody can. The Social Security Administration's own frequently asked questions state it flatly: a divorced spouse must have been married ten years to get spouse's benefits. The agency's eligibility page for family benefits says the same thing from the other direction, that ex-spouses married for at least ten years may be eligible.

That is the rule, and she did not have to like it.

What I could do, and what we did for the next twenty minutes at my own kitchen counter, was go through her own earnings record,

because her own retirement benefit was still there and she had been treating it as a consolation prize instead of her actual benefit. That part of the conversation ended better than it started.

## **How the ten years are counted**

Most people who lose this do not lose it by two months. They lose it by never checking the dates at all, or by counting from the separation instead of from the decree.

It turns on two dates and nothing softer: the day the marriage began, and the day the divorce became final. Both are facts printed on paper somewhere, not judgment calls.

The agency's Program Operations Manual System is the rulebook its own staff works from, and section RS 00202.005 states the requirement with more precision than the public pages do. A divorced spouse must be finally divorced from the worker, and must have been married to them for a period of at least ten years immediately before the date the divorce became final. The same section adds the test that actually decides cases: the requirement is met if the divorce became final on or after the tenth anniversary of the marriage.

Read that twice, because it tells you which date matters. Not the date one of you moved out. Not the date the petition was filed. Not the date you stopped wearing the ring. The date the divorce became final, which is the date on the decree your court issued.

The gap between those dates can be a year or more, and people who separated in the ninth year and finalized in the eleventh often assume they fall short when they do not. The reverse happens too. A couple separates at eight years, reaches a quick agreement, and the decree lands two months before the anniversary nobody was thinking about.

There is also a provision for marriages interrupted by a divorce and a remarriage to the same person. The POMS section says the ten-year period can still be met despite an interrupting divorce. The condition is that the remarriage took place no later than the calendar year immediately following the calendar year of the divorce. The marriage has to have been in existence in each of the ten years before the final divorce. The same section notes that someone whose last divorce fails the test may still qualify based on a ten-year period of marriage immediately before an earlier divorce.

If you married the same person twice, do not try to resolve this with a calendar and a pencil. Bring all four dates to the agency and let them apply that paragraph.

## **The conditions people forget**

The ten years are the famous part. They are not the only part.

Section RS 00202.005 lists what a claimant must do and be. File an application. Reach age 62. Not be married. And, in the condition that quietly disqualifies a lot of people with long careers, not be entitled to a retirement or disability benefit based on a primary insurance amount that equals or exceeds one half of the worker's primary insurance amount.

That last one is worth sitting with. Chapter 12 explained the primary insurance amount as the full-retirement-age benchmark on a record. If your own benchmark is at least half of your former spouse's benchmark, there is no divorced-spouse entitlement for you at all. Not a smaller one. None. Your own record is already carrying you past the point where the other record could add anything.

The "not be married" condition applies to benefits on a living former spouse's record. If you remarried and that marriage is still in place, you generally cannot collect as a divorced spouse on the earlier record. If a later marriage has ended, the answer depends on how

and when, and that is a question for the agency rather than for a book. Marriage is also one of the changes the agency's reporting page tells family-benefit recipients to call about promptly, and that page lists marriage by name. If you are receiving on an ex's record and you are planning a wedding, make the call before the honeymoon, not after.

## **One rule here works in your favor**

Chapter 12 told you that a current spouse generally has to wait for the worker to file. A divorced spouse has a second road, and it is the one piece of this chapter that tends to surprise people.

The ordinary path requires your former spouse to be entitled to retirement or disability benefits, which in practice means they have applied. But the POMS section also describes what it calls an independently entitled divorced spouse. That claimant's former spouse must be fully insured and age 62 throughout the first month of entitlement, and the section says plainly that the worker need not have filed a claim. The additional requirement is that you must be finally divorced from them for at least two continuous years.

So the man who refuses to file, out of strategy or stubbornness or spite, does not hold the gate shut forever. Two continuous years past the decree, with him past 62 and fully insured, and the agency can look at the claim without him.

The section defines that two-year span tightly, counting from the day of the divorce, and gives worked examples of the first month of entitlement for decrees dated at the start of a month and mid-month. If your decree is dated near the first of a month, the month your entitlement could begin may not be the one you would guess. Ask the agency to apply the count to your date rather than estimating it.

There is a second small kindness in these rules, on the agency's filing-rules page. During a voluntary suspension, benefits payable to

a worker's spouse are suspended along with the worker's own. The page then names the exception: a divorced spouse can continue receiving a divorced spousal benefit even if the former spouse voluntarily suspends their retirement benefit. The claim stands on the record, not on the mood of the person who built it.

## **What your claim does to them**

This worry can keep a person from calling: they do not want to take anything from an ex-spouse, a current spouse, or a child.

Here is the documented part. The agency's Family benefits page describes the family maximum as a limit on how much a family can get on one record. If needed, the page says, payments for the spouse and children will be lowered to stay under it. The same page states that payments to ex-spouses do not count toward the family maximum. Your divorced-spouse payment does not crowd a current spouse or a child up against that ceiling.

The agency's frequently asked questions put the two-way version of this simply. If you are divorced and the marriage lasted at least ten years, you may be able to get benefits on your former spouse's record. Their frequently asked questions add the mirror image: your former spouse may be able to get benefits on yours. Both doors, same hallway.

What I will not tell you is anything about what your former spouse will be told, or what their household will conclude, because that is not in the published rules and I am not going to invent it. If that specific worry is the thing stopping you, ask the agency directly when you call. Ask SSA directly what it can disclose and what information it needs from you.

You will need some information about the person. The agency's Family benefits page says to give the representative your family member's Social Security number, and that if you do not have it, you

will be asked for other information, such as their date of birth and their parents' names. Pull together whatever you actually have before you call. If you do not have the Social Security number, tell SSA the former spouse's name, date of birth, and parents' names if you know them; ask what other information it needs. The parents' names surprise people, and they are often the only thing a long-divorced claimant can actually produce.

## **The amount, in one paragraph**

I am not going to re-teach Chapter 12 here, because the arithmetic does not change.

A divorced-spouse benefit follows the same amount rules as a current spouse's. The same half-benefit ceiling from Chapter 12 applies, measured against your former spouse's full-retirement-age amount. The same reduction applies if you start before your own full retirement age. And the same comparison applies against your own retirement benefit, rather than a stack of two whole checks. The agency's filing-rules page includes a divorced spouse inside its description of deemed filing, so the restriction Chapter 12 described applies to you as well. If you are still working, the earnings limits in Chapter 15 can hold back part of what is payable. Go back to the worksheet at the end of Chapter 12 and run it with your former spouse's record in the worker column.

## **When the person has died, start over**

Everything in this chapter is about a living former spouse.

If your ex-spouse has died, you are in a different section of the law with different marriage-length rules, a different age floor, different percentages and different treatment of a later remarriage. Do not carry a single conclusion from this chapter into that situation.

Chapter 14 handles it, and it handles it separately for exactly this reason.

## **Where a professional earns their fee**

Most divorced-spouse questions are clerical. You need dates, and the agency needs to see them.

The place to spend money is on documents. If you cannot find your decree, the court that issued it can give you a certified copy, usually through the clerk of courts or the county prothonotary. The court that issued it can explain its current copy process, form, fee, and processing time. Fees, forms and processing times vary by state and by county, so look up your own court's website rather than assuming it works the way a neighbor's did. If your marriage or divorce happened in another country, or if there was an annulment, or if the decree is unclear about when it became final, that is worth an hour with a family-law attorney licensed in the state where it was entered. A lawyer can tell you what the document legally says. Only the agency can tell you whether it satisfies RS 00202.005.

Call the agency at 1-800-772-1213 for the eligibility question itself. If the household cash-flow question underneath it is large, a fee-only planner can model the timing, but no planner can change what the decree says.

## **A practice file with two different clocks**

Put a blank sheet beside your decree. At the top, write "marriage duration." Farther down, write "time since divorce." Leave space between them. Those are separate tests, and passing the first does not tell you when the second ends.

Here is a hypothetical practice file for a claim considered in 2026, not another person from my kitchen counter. The marriage began

August 13, 2014. The divorce became final August 13, 2024. The claimant remains unmarried and was born May 14, 1962. The living former spouse was born June 9, 1960, is fully insured, and has not applied for retirement benefits. Assume SSA confirms that the claimant's own primary insurance amount is below the entitlement ceiling described earlier.

On the marriage-duration line, write August 13, 2024 as the tenth anniversary. The decree landed that very day. Under SSA's POMS RS 00202.005, checked October 4, 2026, that meets the marriage-duration requirement. A separation in November 2022 would not change this result. Keep that separation date out of the anniversary calculation.

The worker has not filed, so this file needs the independent-entitlement route. Both people are already past their sixty-second birthdays throughout the months being considered. The remaining calendar question is the continuous period since the final decree, not the length of the marriage that preceded it.

For the August 13, 2024 decree, the two-year period runs from August 13, 2024 through August 12, 2026. September 2026 is the first possible entitlement month under this route, assuming the application and all other requirements are satisfied. August is not the answer merely because the anniversary occurs in August.

That result follows the August 13 example SSA prints in RS 00202.005. Its published example uses a 2010 divorce and September 2012 entitlement; this practice file moves the same calendar pattern to 2024 and 2026. The dates here are illustrative. They are not a forecast of an actual claim's approval.

Now try a second hypothetical file. The marriage began August 1, 2014 and the final decree is dated August 1, 2024. Keep the ages, unmarried status, insured status and benchmark assumption unchanged. Again the marriage reaches its tenth anniversary. But the divorce-duration period now runs August 1, 2024 through July

31, 2026. August 2026 becomes the first possible entitlement month. SSA's first-day-of-the-month example supports that result.

Change only that second decree to August 2, 2024. The marriage still clears its duration test. The continuous divorce period instead ends August 1, 2026, and the first possible entitlement month moves to September 2026. RS 00202.005 prints this second-day pattern too. One day can change the earliest month without changing whether the marriage qualifies.

Do not turn either earliest month into a recommendation to claim then. These hypothetical claimants are below their full retirement age. The amount comparison belongs on Chapter 12's worksheet; the calendar here only identifies when this particular route can open.

## **Give each answer somewhere to go**

Beside each numbered line of the checklist below, leave a margin for one of four labels: "documented," "SSA confirmed," "missing," or "does not qualify." A certificate can document a date. It cannot confirm the former spouse's insured status or settle the comparison between earnings records.

If the marriage-duration test fails and there is no interrupted-marriage or earlier-divorce provision to examine, stop calculating an independent-entitlement month for that marriage. Work with your own record instead. If the dates qualify but the worker has not filed, use the separate divorce-duration line. If the worker is already entitled, ask SSA about the ordinary route; the independent route's waiting period is not a universal wait imposed on every divorced claimant.

For an unanswered line, write exactly what is missing rather than supplying a plausible answer. "I don't know whether my former spouse filed" is usable information. "They probably filed at sixty-two" is a guess wearing a date.

You can make the request this plainly: “My decree became final on this date. My former spouse is living, and I don’t know whether they are entitled. Please check which divorced-spouse route applies and the first month I could qualify. What evidence is still needed?”

Write the answer beside the relevant line, not across the whole page as a broad “yes.” You need to know which condition was confirmed before choosing a filing month.

## **Your ten-year count**

Do this before you call, and do it with the actual paper in front of you rather than from memory.

1. Find the marriage certificate. Write the date exactly as it appears, month, day and year. If you cannot find it, request a copy from the vital records office in the state where you married.
2. Find the divorce decree. Write the date the divorce became final, as the decree states it, not the date you filed and not the date you separated.
3. Count from the marriage date to the tenth anniversary of that date. Write that anniversary on the page.
4. Compare the anniversary with the decree date. If the decree date falls on or after the anniversary, the ten-year requirement is met. If it falls before, it is not, and no amount of explaining will move it.
5. If you married the same person more than once, list every marriage and divorce date in order and bring the whole list. The interruption provision and the prior-divorce provision both exist, and both depend on the sequence.
6. Write your current marital status and the date of any later marriage and its end, if it ended.

7. Write your own full-retirement-age estimate from your my Social Security account. Then ask the agency to compare the two benchmarks under the entitlement condition above, since that comparison alone can end the question.
8. Gather what you have on your former spouse: Social Security number if you have it, otherwise date of birth and parents' names.
9. Note whether they have filed for benefits, if you know, and whether the decree is at least two years old, so the agency can tell you which path applies.
10. Write down the date you called, the representative's answer, and what they asked you to send. If the answer depends on a document, do not treat it as settled until the document is in their hands.

The woman with the manila envelope filed on her own record about a year later, at her full retirement age, and she sends a Christmas card. What I remember is how carefully she had folded that certificate, as if the paper itself might be worth something someday.

Start with the two dates before you build a plan on them.

## **Chapter 14: When the Other Record Becomes Yours**

The funeral home usually makes the call. Social Security says so on its own page about what to do when someone dies: a funeral home generally tells the agency, so you typically do not need to report the death yourself.

People hear that and assume the rest follows.

It does not. Reporting a death does not by itself establish a survivor claim, and the agency's rulebook for widow and widower claims lists a filed application among the entitlement requirements, with only narrow exceptions. A death certificate moving through a county office does not put a check in your account. Ask the agency whether an application or an exception applies to you.

Chapter 13 dealt with a former spouse who is still living. This chapter deals with a spouse or former spouse who has died, and almost every number changes. The marriage-length rule is different. The earliest age is different. The percentages are different. What a later remarriage does to you is different. Carry nothing over.

### **Nine months for a spouse, ten years for an ex**

Start with who the agency will even look at.

For a surviving spouse, the Social Security Administration's survivor eligibility page states the condition plainly: you were married for at least nine months before your spouse's death. Not ten years. Nine months. That one line resolves more second-marriage worry than any other sentence in this book.

For a surviving divorced spouse, the same page sets the bar at a decade of marriage, and it adds that some valid non-marital legal relationships may also qualify. The ten-year count works the way Chapter 13 described it, measured against the date the divorce became final, so use that counting checklist rather than redoing the arithmetic here.

Both rules have exceptions, and the agency says so in the next breath. Its eligibility page states that you might be eligible regardless of age and how long you were married, and names caring for a child of the person who died as one common example. The Program Operations Manual System, section RS 00207.001, is more specific about the nine months. It lists the duration requirement, then lists alternatives that can substitute for it, including being the parent of the worker's child and certain adoptions that occurred during the marriage. There is also a separate agency policy section on exceptions to the nine-month rule.

Which means a short marriage ended by a death is not automatically a closed door. If your marriage lasted less than nine months and a child or an adoption is anywhere in the picture, do not decide this at your own table. Call 1-800-772-1213 and let them read RS 00207.001 against your facts.

One more thing from that same POMS section, and it is the kind of detail that only matters once in a lifetime. If the divorce was not final when the worker died, the agency notes that the claimant may qualify as the widow or widower rather than as the surviving divorced spouse. Separated is not divorced. If papers were pending when the death occurred, say so on the phone, because it may move you into the more generous category.

## **Sixty, not sixty-two**

The living-ex rules in Chapter 13 used 62 as the floor. Survivor rules do not.

The agency's Survivor Full Retirement Age page states that you can start getting survivor benefits as early as age 60, or 50 if you have a disability. Its eligibility page repeats the same ages from the other direction.

Two years earlier than the retirement floor, and ten years earlier than that if a disability qualifies you. For somebody widowed at 58 who assumed nothing existed until 62, that is a real difference in a hard year.

Early still costs, and the cost here is steep. I will put the percentages on the board in a moment.

## **A later marriage is not automatically the end**

Here is where survivor rules diverge most sharply from the living-ex rules, and where I have watched people throw away money by guessing.

Chapter 13 said that claiming on a still-living ex generally requires you to be unmarried. For survivor benefits, the agency's eligibility page states the condition differently: you did not remarry before age 60, or before 50 if you have a disability. Read that as a deadline, not a prohibition. Remarriage after age 60 generally does not bar aged survivor benefits. For remarriage at ages 50 to 59 with a disability, additional conditions apply, including when the disability and the benefit entitlement began, so confirm your exact dates with the agency before remarriage.

POMS RS 00207.001 states the entitlement condition as being unmarried, unless the marriage can be disregarded under the agency's own policy section on remarriage, and for surviving divorced spouses it allows a remarriage that can be disregarded for

entitlements after December 1983. RS 00207.003 is the section that spells out when a remarriage is disregarded, and for a claimant who remarried between 50 and 60 it asks whether they were disabled at the time of the remarriage, or already entitled as a disabled widow or widower then. The public page is shorthand. It is not a safe rule for timing a wedding. The practical point either way: a widow or widower who remarried in their sixties should ask the agency about the earlier record rather than assuming it closed.

I would not try to time a wedding around this on my own reading of a web page. If you are near 60 and considering remarriage, make the call first and get the answer applied to your dates. Months matter in this program, and this is one of the few places where a date you fully control is worth checking before you set it.

And once you are receiving, the agency's survivor reporting page tells you to call promptly about updates such as marriage, income and custody changes. Tell them. Do not let them find out later.

## **Let me put it on the board**

The percentages are the part people most often get wrong, usually by assuming a widow gets half of something.

The agency's survivor amount page gives the scale directly. Payments start at 71.5 percent of the deceased's benefit at the earliest claiming age and rise the longer you wait to apply. Its examples are over 75 percent at 61, over 80 percent at 63, and over 90 percent at 65. You can get up to 100 percent at your Full Retirement Age for survivor benefits.

One hundred percent. Not half. At survivor full retirement age the age-based reduction ends, though the amount can still be limited if the deceased worker received reduced retirement or disability benefits, so ask the agency to calculate the payable amount rather than reading 100 percent as a promise. What matters for now is that

the measuring stick here is the deceased's own benefit, not a fraction of it, which is why this chapter exists as its own chapter and why the spousal ceiling from Chapter 12 has no business in your calculation.

Now the trap in that last sentence.

Your Full Retirement Age for survivor benefits is its own age. The agency's page on it says the survivor age falls between 66 and 67, and says explicitly that it is not always the same as the Full Retirement Age for retirement benefits. The same page carries a tool where you enter your birth date and it returns your survivor age.

Go enter your birth date. Do not take the age you learned in Chapter 10 and reuse it. Two different ages can belong to the same person in the same program, which is an odd piece of drafting, and nobody in Congress has apologized for it.

Children can also receive on the record, generally 75 percent of the parent's benefit according to the same amount page, and the family maximum can lower everyone's payments to stay under the limit. An ex-spouse sits outside that ceiling here too, the same carve-out Chapter 12 mentioned. If you are a widowed parent with minor children, ask the agency to run the household total rather than adding the percentages yourself.

## **What an early claim does to the survivor**

Chapter 10 promised that one person's claiming age can reach into another person's benefit years later. This is the mechanism, and it is the strongest argument in this book for a higher earner to think hard before filing at 62.

POMS section RS 00615.320 describes a limit the agency's staff applies when the worker who died had ever been entitled to a reduced retirement benefit or a reduced disability benefit. When the deceased ever received reduced retirement or disability benefits, the agency tests a ceiling: the larger of 82.5 percent of the death primary

insurance amount, or the amount the worker would have received if alive.

That is a maximum. It is not a floor, and it is not your check. The same section applies the ceiling only when the survivor benefit, after adjustment for the family maximum and reduction for age, comes out above both of those figures. A survivor claiming early can receive less than either one. Ask the agency for the actual age-adjusted benefit instead of doing 82.5 percent on the back of an envelope.

Read that twice, because it is the whole argument for patience. If the higher earner in a couple claims early, the survivor's ceiling can be tied to that reduced amount for the rest of their life. The agency's own worked example in that section runs the comparison both ways and pays the larger of the two.

That is a planning fact, not a filing fact, and it belongs on the table while both people are alive. It is also a reason to be skeptical of the common advice that the lower earner's claiming date is the only one worth agonizing over. Often it is the other way around.

There is a second entitlement condition in RS 00207.001 that works like the one-half test from Chapter 13, but with a different threshold. A widow, widower or surviving divorced spouse must not be entitled to a retirement benefit that equals or exceeds the deceased worker's primary insurance amount. Half was the bar on a living ex's record. Here it is the whole amount. A survivor with a strong record of their own can still have a survivor benefit available where a divorced spouse of the same person, still living, would not.

## **You are allowed to switch**

This is the rule I most wish were printed on the front of the application.

The agency's survivor amount page says that if you are eligible for a survivor benefit and another benefit, you choose the payment that

is best for you, that the payments are not added together, and that you can switch benefits later. Its example is starting with survivor benefits and changing to retirement at 70, when that payment is highest.

The filing-rules page explains why this works. Deemed filing, the Chapter 12 rule that ties the two living-couple claims together, applies to retirement benefits and not to survivor benefits. A surviving spouse can start a survivor benefit independently of their own retirement benefit. The page gives an example of a 62-year-old widow who takes only the survivor benefit, leaves her own record alone to grow, and starts her own larger retirement benefit at 70.

So the sequence is a real choice, and it runs in more than one direction depending on which record is stronger. A survivor whose own record is modest may want the opposite order. The reductions apply to each benefit under its own rules and its own full retirement age, so ask the agency to price both sequences against your two dates before you file either one. Do not assume the order that worked for someone at your church is the order that works for you.

If you are working while receiving a survivor benefit, the agency's amount page notes that earnings limits may apply depending on your age. Chapter 15 handles that mechanism in full.

## **The \$255 and the two-year clock**

There is a one-time payment, and it is small, and people are routinely startled by both facts.

The agency's lump-sum death payment page states the amount as \$255, payable to a spouse. If there is no spouse, the page says some children may be eligible: those 17 or younger, those 18 to 19 and in school full time through grade 12, and those of any age who developed a disability at 21 or younger. A spouse who did not live in

the same home may still be eligible if they can get benefits on the record of the person who died.

The deadline is the part worth writing down. That page says you must apply for this payment within two years of the family member's death.

Two years sounds like plenty until you have lived through the first one. Put it on a calendar the week you read this.

Since this comes up on the same phone call: the agency's survivor amount page also notes you might get Medicare based on the deceased's work history if you are 65 or older, or if you have a disability or end-stage renal disease. That is a separate program with its own enrollment deadlines, and it is outside this book.

## **Where a professional earns their fee**

Most of this chapter is a phone call. Some of it is not.

Call the agency first, always, for eligibility and amounts. Nobody else can tell you what the record says.

Spend money on a lawyer when the relationship itself is the question. A divorce pending but not final at the death. A marriage performed in another country, an annulment, a common-law relationship, a contested second marriage, a decree whose effective date is unclear. Each of those asks what a document legally establishes, and the answer can turn on the law of the state where the worker lived when they died. Those rules vary by state. A family-law attorney licensed there can read the paper. Only the agency can decide whether it satisfies RS 00207.001.

Spend money on a tax professional or a fiduciary fee-only planner when the switching sequence runs into the rest of a widowed household's income. Filing status on a tax return changes after a death, and the taxation rules in Chapter 16 do not care how fair that feels. The agency will not model your return. The sequence that

produces the largest lifetime benefit is not always the one that leaves the most spendable money in a given year.

Nobody you pay can change a date on a decree or an entry in an earnings record.

## **Your survivor chart**

Fill this in before you call, with your own numbers in the blanks. It takes about twenty minutes and it will make the call shorter.

1. Write the deceased worker's full name, Social Security number if you have it, date of birth and date of death. Missing the number is not fatal; the agency's amount page says a representative will instead ask for details like the date of birth and the names of that person's parents.
2. Write your relationship: current spouse at the time of death, or divorced. If divorced, write the marriage date and the date the divorce became final, and apply Chapter 13's ten-year count.
3. If you were married less than nine months, write down any child of the worker, any adoption during the marriage, and the dates. Then ask the agency whether an exception to the nine-month rule applies.
4. Write your own date of birth. Enter it in the tool described earlier in this chapter and write down the survivor age it returns. Label it "survivor FRA" so you never confuse it with the age from Chapter 10.
5. Make a short column of ages from 60 through your survivor age. Beside each, write the percentage the agency's amount page gives: 71.5 percent at 60, over 75 at 61, over 80 at 63, over 90 at 65, up to 100 at your survivor age. Mark the ages the page does not list as unknown rather than guessing between them. If instead you may qualify on disability grounds, start your column

at 50 and leave every rate blank. Those figures are not published the way the age-60 scale is, so ask the agency for your entitlement date, any waiting period and the age-specific reduction that applies to you, rather than copying the examples above.

6. Write whether you have remarried, and at what age. If the remarriage happened at or after 60, ask about the earlier record anyway. If it happened between 50 and 60 and a disability is involved, write down the date the disability began and the date any benefit entitlement began, and ask the agency to apply RS 00207.003 to those dates.
7. Write your own retirement estimate at your own full retirement age and at 70, from your my Social Security account.
8. Ask the agency for record-specific estimates in four places: a survivor benefit starting now, a survivor benefit at your survivor FRA, your own retirement benefit now or whenever you first become eligible, and your own retirement benefit at 70. Then ask them to compare both orders of claiming, month by month against your eligibility dates, before you file either one.
9. Ask whether the limit in RS 00615.320 applies, including whether the worker was ever entitled to reduced retirement or reduced disability benefits. If it does, ask the agency for the applicable ceiling and your actual payable survivor amount.
10. Ask about the \$255 lump-sum payment on the same call, and write the two-year deadline on your calendar before you hang up.
11. Write the date, the representative's name and what they told you. If the answer depends on a document you have not sent, the answer is not final.

The hardest part of this chapter is that it asks you to do arithmetic in the worst month of your life. If you can, hand steps one through

seven to someone who loves you and let them fill in the blanks. Then make the call yourself.

## Chapter 15: Withheld Is Not Lost

He came to the Tuesday table at the library with a letter he had already read eleven times, and he put it down the way you put down something that has been biting you.

Early sixties. Still driving a route four days a week because the fifth day had been taken away from him, not because he wanted the time. He had filed for his benefit the year before, kept working, and then the letter arrived saying the agency would be holding back part of what he was owed.

“So that’s gone,” he said. “I paid in for forty years and they’re keeping it.”

I asked him to wait on the anger for twenty minutes.

Then I showed him the two sentences on the agency’s own page about receiving benefits while working. Beginning with the month you reach full retirement age, earnings no longer reduce your benefits, no matter how much you earn. And the agency will recalculate your benefit amount to give you credit for the months it reduced or withheld benefits because of your excess earnings.

He read it twice and said a word I will not print.

It was not relief, exactly. The money was still not in his account that year, and he had made plans around it. But the shape of the thing changed in front of him. I’ve seen people turn down work because they thought the withheld checks were gone for good.

Withheld and lost are different words, and the agency means the first one.

## **The test has an expiration date**

The earnings test is temporary. Every explanation of it should start there.

The agency's rulebook for its own staff, Program Operations Manual System section RS 02501.021, states that the test does not apply to people at or above full retirement age, and that this has been the case since January 2000. The public page says the same thing in plainer words: once that birthday month arrives, there is no limit on how much you can earn and still receive your benefits.

Not a higher limit. No limit.

So the whole of this chapter concerns the stretch between your filing date and the month you reach the full retirement age you found in Chapter 10. If you are already past that age, you can skip to the chapter on taxes, which is a different mechanism entirely and still applies to you.

And one note for the survivors reading this, because Chapter 14 left this question open on purpose. The agency states that if you receive survivor benefits, it uses your full retirement age for retirement benefits when applying the earnings test, even though your survivor full retirement age may be earlier. RS 02501.021 repeats it and adds that this holds even if you are not entitled to retirement benefits at all. Two ages, one of them controlling here, and it is not the survivor one. Of all the odd corners in this program, that one has cost people the most surprise.

## **Two limits, and which one is yours**

Your expected earnings and FRA month determine which annual limit applies.

If you are under full retirement age for the entire year, the agency deducts one dollar from your benefit payments for every two dollars you earn above the annual limit. For 2026 that limit is \$24,480.

If you reach full retirement age during the year, a different and much higher limit applies, and the deduction rate changes. For 2026 that limit is \$65,160, the agency deducts one dollar for every three dollars above it, and it counts only your earnings up to the month before you reach full retirement age. Earnings in the month you turn that age, and after, do not count at all.

Both of those dollar figures are 2026 figures. The agency publishes next year's each fall at [ssa.gov/cola/](https://ssa.gov/cola/), and Chapter 90 tells you how to go get the one that applies to your year before you act on any of this. Do not plan a 2028 work year around a number printed in this book.

The agency's own worked examples on the receiving-benefits-while-working page are the clearest I have found, so I am going to use its numbers rather than invent mine.

In the first, you are under full retirement age all year, entitled to \$800 a month, which is \$9,600 for the year. You work and earn \$33,400. That is \$8,920 above the \$24,480 limit. The agency reduces your benefits by \$4,460, one dollar for every two over, and you receive \$5,140 of the \$9,600.

In the second, you reach full retirement age in August 2026, entitled to the same \$800 a month. You earn \$72,000 for the year, with \$66,000 of it in the seven months from January through July. Only those seven months count, and they are \$840 above the \$65,160 limit. The reduction is \$280, one dollar for every three. You receive \$5,320 of the \$5,600 due for those seven months. Beginning in August, the agency's page says, you receive your full \$800 per month no matter how much you earn.

Look at what the second example shows. The second example has higher annual earnings but only a \$280 pre-full-retirement-age reduction, because its rules and counted months differ. The year you reach that age is a different country from the year before it.

Note too that both are separate hypothetical cases, and both assume the person is entitled to benefits for all twelve months of the year. If your benefits start mid-year, your own arithmetic has fewer months of benefits in it to withhold from.

What those published examples give you is the annual total. They do not tell you which months the agency will hold a check and which months it will pay one, and the mechanics of that are in the staff manual rather than on the public page. Ask the representative how the withholding will land across your calendar, because a household that budgets for twelve small checks and receives four missing ones has a problem the arithmetic did not show.

## **What counts, and the long list of what does not**

More people are frightened by this test than are subject to it, and the reason is that they are counting the wrong money.

The agency is specific. When it figures how much to deduct, it counts the wages you make from your job, or your net profit if you are self-employed. It includes bonuses, commissions and vacation pay.

Then it names what it does not count: pensions, annuities, investment income, interest, veterans benefits, and other government or military retirement benefits.

Read that second list slowly if you have been dreading this chapter. A pension does not count. A required distribution from a retirement account is not a wage. Dividends, interest and capital gains are not wages. Rental income is not a wage for this purpose, though the agency treats some business activity as self-employment, so ask rather than assume. If your retirement income arrives without an employer attached to it, the earnings test very likely has nothing to measure.

Which leaves the people this chapter is actually for: those still drawing a paycheck or running a business.

For the self-employed, there is a second test that catches people off guard, and it is about hours rather than dollars. I will come to it in the next section, because it lives inside the first-year rule.

## **The rule for the year you stop**

Somebody who works through June and files in July has a problem the annual limit creates by accident. They have already earned more than the yearly limit before their first check exists. Measured against the annual figure, they would lose benefits for months in which they earned nothing at all.

The agency wrote a rule for exactly this, and it is on the special earnings limit rule page. It lets the agency pay a full Social Security check for any whole month it considers you retired, regardless of your yearly earnings.

The monthly tests for 2026: if you will be under full retirement age for all of 2026, you are considered retired in any month your earnings are \$2,040 or less and you did not perform substantial services in self-employment. If you reach full retirement age in 2026, that monthly figure is \$5,430 under the same condition. Both are 2026 amounts, and both move with the annual update.

Here is the hours test I promised. The agency defines substantial services in self-employment as devoting more than 45 hours a month to the business, or between 15 and 45 hours to a business in a highly skilled occupation.

The page's own example is worth repeating because it shows both halves working. A man retires from his job at 62 on June 30, 2026, having earned \$37,000 before he retired. On October 5 he starts his own business, works at least 15 hours a week for the rest of the year, and earns another \$3,000 after expenses, for \$40,000 on the year.

His annual earnings are far above the 2026 limit of \$24,480. He still receives a benefit for July, August and September, because in each of those months he was not self-employed and his earnings were under the \$2,040 monthly figure. He receives nothing for October, November and December, because he worked more than 45 hours a month in his business. Beginning in 2027, the page says, deductions go back to being based on his annual earnings limit alone.

Three paid months and three unpaid ones, in a year where a flat annual test would have taken a good deal more.

Now the part the public page leaves out. The staff manual, RS 02501.030, ties this rule to what it calls a grace year. Your initial grace year is the first taxable year containing a qualifying month, on or after the month your entitlement begins and before the month you reach full retirement age. That is not the same thing as the first year you were paid. If you worked hard through your first year or two of benefits and only cut back later, the grace year may be that later year. So ask whether this is your first qualifying monthly-test, or grace, year, even if you started benefits earlier. Raise your monthly earnings any year an unused grace year might still be sitting there.

## **The sentence I wish they printed on the letter**

Now the part that sent the man at the library home in a different mood than he arrived in.

At full retirement age the agency recalculates, crediting back the months in which excess earnings cut or stopped what it paid you. The staff manual puts a name and a shape on this. RS 02501.021 says that months in work deduction convert to crediting months, that crediting months result in a higher monthly benefit, and that the higher benefit is realized at full retirement age. The companion section, RS 00615.482, grants a crediting month for any month of

full or partial work deduction, and says a beneficiary needs only one crediting month to qualify for the automatic adjustment.

What that adjustment does is remove some or all of the reduction you took for claiming early, for the months you did not actually get paid.

Say that back to yourself in plain terms. You claimed at 62 and accepted a permanently smaller check, as Chapter 10 described, because the reduction is counted in months of benefits received. If the earnings test withheld your benefit for eight of those months, the agency goes back at full retirement age and treats you more like someone who received eight fewer months of early benefits. The ongoing check rises.

Before you plan around that larger check, look at what the recalculation won't do.

It is not a refund. No lump sum arrives with the withheld dollars in it. What changes is the monthly amount going forward, from full retirement age onward, which means the value of it depends on how long you live to collect it. The staff manual also notes that cases with work deductions in the year you reach full retirement age carry a later review date, in May of the following year, so the adjustment is not always instant.

It is not dollar for dollar. The size of the increase depends on your own record and on how many months were withheld, and nobody can tell you the figure from a book. Ask the agency what the adjustment will do to your amount.

And it does not make the earnings test free. A withheld check in your sixties is money you did not have in your sixties, whatever arrives later.

There is a separate recalculation that people confuse with this one, and both can apply to the same person. Each year the agency reviews the records of all beneficiaries with wages reported for the previous year. If your latest year of earnings is one of your highest

years, it recalculates your benefit and pays any increase you are due. That increase is retroactive to January of the year after you earned the money. So that one is about your earnings record getting better. The crediting-month adjustment is about months you were not paid. Different machinery, same direction.

## **Whose check gets hit**

Your earnings are not always the only earnings in the calculation, and that surprises households.

The staff manual's opening description of the earnings test says the agency uses it to measure the extent of a beneficiary's retirement and determine the amount to deduct from the monthly benefits of the wage earner and auxiliaries. "Auxiliaries" means the family members drawing on that record. A worker who keeps earning can cut their own check and, on the same record, what is payable to a spouse or a child.

If you read Chapter 12 and built a household plan around a spousal benefit, bring that plan back to this page before you set a filing date.

There is a carve-out for former spouses that fits the pattern Chapter 13 established. RS 02501.021 states that the earnings test does not apply to divorced spouses on the basis of the wage earner's excess earnings in two situations. One is where the wage earner was entitled to benefits before the month of divorce. The other is where the wage earner's entitlement began in the month of divorce or later and the two have been divorced for at least two years. A divorced-spouse claimant's own earnings can still reduce their own benefit. Their ex's paycheck generally does not reach them under those conditions.

The manual lists other people the test does not reach, including those receiving disability benefits, with exceptions, and those

working outside the United States in work Social Security does not cover. If either describes you, that is a question for a representative rather than for this chapter.

## **Where a professional earns their fee**

Most of this is a phone call and a calculator.

Use the agency's own Retirement Earnings Test Calculator before you call; the receiving-benefits-while-working page links straight to it. The calculator's own note says the retirement earnings test always uses the normal retirement age applicable to retired workers, which is the same point the survivor paragraph above made.

Spend money on a tax professional or an enrolled agent when you are self-employed. Your net profit after expenses is the figure this test uses, and net profit is a number a return produces rather than a number you know in August. The hours question matters too, and it is less tidy than it looks. Even 15 to 45 hours in a highly skilled business can count as substantial; more than 45 usually does, subject to narrow exceptions the agency's manual describes. One of those covers personal-service work where the monthly earnings are readily determinable and fall at or under the monthly figure. Log your hours and ask the agency to assess your particular work. Nobody there will keep your calendar for you.

And if you are weighing whether to work at all during these years, that is a cash-flow question, not a benefits question. A fee-only planner paid for an hour can model it. The thing not to do is take a smaller job out of a belief that the withheld money evaporates, because that belief is wrong, and it is expensive.

## Your earnings test worksheet

Do this on paper before you file, or before January of a year you expect to earn well.

1. Write the month and year you reach full retirement age, taken from Chapter 10, and beside it the month your benefits start or started. If you are claiming a survivor benefit, write that same retirement age here, not your survivor age, because that is the age this test uses.
2. Write which case you are in for the coming year: under full retirement age for the whole year, reaching it during the year, or past it. If you are past it, stop. The test does not apply to you.
3. Go to [ssa.gov/cola/](https://ssa.gov/cola/) and write down the earnings limit for the year in question and the matching monthly figure. Cross out the 2026 figures in this chapter and write yours beside them.
4. Estimate your earnings for that calendar year: gross wages, bonuses, commissions and vacation pay, plus net self-employment profit after expenses. In a birthday-month year, count only what you will earn before that month. Then write your monthly benefit amount and count how many months of that year fall before your full retirement age month and after your benefits start. Multiply the two. This is your own pre-FRA benefit total, not necessarily the household maximum: if a spouse or child receives on your record, their payable benefits may also be affected. Treat the quotient as preliminary and have SSA calculate the record-wide withholding and monthly timing.
5. List separately every dollar of income that is not in step 4: pension, annuity, interest, dividends, capital gains, veterans benefits, government or military retirement. Draw a line through the list. It does not count here.

6. Subtract the limit from the step 4 earnings figure. Divide the excess by two in the under-age case, or by three in a birthday-month year. Call that your preliminary excess-earnings deduction. Do not cap it at your own benefit total if a spouse or child receives on your record; have SSA calculate the record-wide amount and monthly timing. Where step 7 applies, the monthly rule governs those months instead.
7. If you are retiring or cutting back mid-year, write down each remaining month's expected earnings and mark any month at or under the monthly figure from step 3. Those are the months to ask about under the special rule. Ask whether that year is a grace year for you, whatever year your benefits began. If you are self-employed, write your hours per month beside each one.
8. Ask the agency three things on one call: how much it expects to withhold for the year, which months it will withhold from, and what the adjustment at full retirement age is expected to do to your monthly amount.
9. If a spouse or child receives benefits on your record, ask what your earnings do to their payments too.
10. Note the call date, who you spoke to, and each answer. Then tell them promptly if your earnings estimate changes during the year, because an estimate you never corrected becomes an overpayment you have to give back.

The man with the letter kept driving his route. He told me the following spring that he had worked out roughly what the adjustment would be worth and had decided it was worth working for.

Go find out what your own year actually costs you before you turn down the hours.

## Chapter 16: The Raise and the Bill

Put the benefit-increase notice beside the SSA-1099. The larger monthly amount is on one page. A year's benefits are on the other.

It can feel as though one envelope gives you something and the other takes it back. But the SSA-1099 reports benefits; it does not decide how much of them is taxable. That answer needs the rest of your income and your filing status.

The notices belong beside each other, not because they use the same formula, but because you need both to work out what you can spend.

The cost-of-living adjustment changes the benefit. Federal income tax may change what you keep. Start with the adjustment.

### What the adjustment actually measures

The cost-of-living adjustment, or COLA, isn't a reward for another year's work. Under the existing law, it follows a price-index formula rather than a fresh vote each fall.

Social Security's [COLA explanation](#) says the purpose is to protect benefits' purchasing power against inflation. It uses the Consumer Price Index for Urban Wage Earners and Clerical Workers, abbreviated CPI-W. The comparison runs from the third quarter of the last year a COLA was determined to the third quarter of the current year. The Bureau of Labor Statistics at the Department of Labor produces the index; the law names it as SSA's measure.

That page also states the limit: if the index hasn't increased under this comparison, there is no COLA.

Not a smaller adjustment. None. The agency's own table of every automatic adjustment since 1975 shows 0.0 percent for January 2010, 0.0 percent for January 2011, and 0.0 percent for January 2016. Three years in recent memory with nothing added. The same table shows 8.7 percent for January 2023. All four results came from the same formula, which is the whole argument for understanding the formula rather than arguing about the result.

A short piece of history explains why it works this way. SSA's history on the COLA page dates the provision to the Social Security Amendments of 1972; automatic increases began in 1975. Before that, benefit increases needed special legislation. A price index is a more useful planning basis than waiting for another bill. I'll take the index.

The adjustment is **2.8 percent (2026)**. Social Security's [October 24, 2025 announcement](#) gives that rate. Its [latest-COLA page](#) specifies December 2025 benefits, payable in January 2026. The December-benefit timing is not a typo; SSA says that has been the pattern after 1982. Increased Supplemental Security Income payments for January 2026 were scheduled for December 31, 2025, because January 1 is a holiday.

Chapter 10's reduced benefit receives COLAs too. Applying an identical positive percentage to two different benefit amounts does not erase the difference: both rise, and their dollar gap grows. That is a comparison of benefit amounts with other factors held constant, not a prediction of two people's bank deposits. Use your personalized notice for the amount SSA will actually pay.

## Why next year's number is not in this book

As of October 4, 2026, the COLA for 2027 has not been published.

That is not evasion. The comparison needs the completed third quarter's price data, so SSA announces the result in October rather

than at the start of the year being measured. Its [COLA summary](#) says the next announcement will be in October 2026. Don't turn last year's October 24 date into a promised date this year.

The annual information also includes Chapter 15's earnings limits and the taxable maximum — the ceiling on earnings subject to Social Security payroll tax. Those figures are not the income thresholds for taxing your benefits. A page can contain several kinds of tax information without making them interchangeable.

So any book that prints a confident dollar figure for a year the government has not yet announced is printing a guess with a dollar sign in front of it.

Go to [ssa.gov/cola](https://ssa.gov/cola) and read the figure for the year you will actually be paid. SSA's 2026 information scheduled online notices for late November 2025 and mailed notices for December 2025. Check the new year's notice schedule rather than assuming those dates carry forward. You can choose available online notices in your my Social Security account. Chapter 90 gathers the annual checks.

## **Whether yours are taxed comes down to one comparison**

Leave the COLA notice in place and pick up the SSA-1099.

The comparison needs two figures: half of your yearly benefits, and every other dollar of income on your return.

The second figure reaches well beyond a paycheck. [IRS Publication 915](#), prepared jointly with SSA and the Railroad Retirement Board, supplies the federal benefit-tax worksheets. The edition available on October 4, 2026 is for 2025 returns. The examples and thresholds below are from that edition, not unpublished instructions for a 2027 return. Check the edition for your tax year before filing.

SSA's [tax FAQ](#) calls the comparison figure "combined income": adjusted gross income, tax-exempt interest, and half your annual benefits. Use adjusted gross income before including any taxable Social Security benefits; don't count them twice. Publication 915 supplies the required adjustments and add-backs for particular situations.

Tax-exempt interest. The municipal bond interest you were told was invisible to the IRS counts in this comparison. It is still exempt from tax itself. It still pushes the benefits calculation.

SSA's withholding page uses the looser phrase "earned income." Don't read that as excluding a taxable pension, taxable retirement-account distribution or investment interest. Publication 915's quick Worksheet A starts with half the benefits and all other taxable income, plus tax-exempt interest, without subtracting deductions. It is a screening calculation, not necessarily the adjusted figure the full worksheet will use.

On a joint return, include both spouses' income and benefits. Publication 915 requires the other spouse's income even if that spouse receives no Social Security. A worksheet containing only your own check cannot answer the joint-return question.

Let me put the base amounts on the board, from Publication 915 for 2025 returns.

For single, head-of-household or qualifying-surviving-spouse status, the base amount is \$25,000 (2025 rules).

Married filing separately, but apart from your spouse throughout the entire tax year, also has a \$25,000 base under the 2025 rules.

A joint return has a \$32,000 base (2025 rules).

Married filing separately while living with your spouse at any time during the year has a \$0 base (2025 rules). That case uses a different worksheet branch, with up to 85 percent of benefits taxable. Get help instead of using the individual tiers below.

For the other filing statuses just described, Publication 915 says generally up to 50 percent of benefits may be taxable above the base. Up to 85 percent may be taxable above \$34,000, or \$44,000 on a joint return (2025 rules). “Up to” matters: neither crossing a threshold nor multiplying the whole benefit by a percentage gives the actual taxable amount. The full worksheet does that.

The publication’s Worksheet A example for 2025 has a single filer over 65 with \$1,500 of net benefits, a \$17,000 taxable pension and \$700 of taxable interest. There is no tax-exempt interest. Half the benefits is \$750; the screening total is \$18,450. Below the \$25,000 base, none of those benefits is taxable under this example’s facts. Whether a return is otherwise required is a separate question for the current Form 1040 instructions.

Publication 915’s Worksheet 1 Example 1, also for 2025, shows a different single filer. A fully taxable pension of \$18,600, part-time wages of \$9,400 and taxable interest of \$990 produce \$28,990 of other income. Net benefits are \$5,980. The completed worksheet gives \$2,990 of taxable benefits.

These are separate IRS examples with different benefits and other income, not one person changing a single variable. They show why you need the whole year’s figures. Neither is an estimate of your tax bill.

## **Eighty-five percent is not a tax rate**

Keep the word “included” beside that percentage.

Up to 85 percent of your benefits can be included in taxable income. That is not an 85 percent tax rate. The publication is explaining how much benefit income enters the return; the rest of the return determines the tax due, taking account of applicable rates, deductions and credits.

In the 2025 IRS example above, \$2,990 is the taxable benefit amount, not the tax owed on the \$5,980 payment. You haven't finished the return when you reach that line.

I have watched people turn down a part-time job or delay a withdrawal on the strength of misreading that number. Understand what it says before you rearrange your year around it.

## **The numbers that never got a cost-of-living adjustment**

The part I find hardest to defend is the mismatch: COLAs follow an index; the benefit-tax thresholds do not.

A later law could change the thresholds, but a positive COLA by itself does not.

Publication 915 makes the difference visible. Its Worksheet 2 covers lump sums for years after 1993 and uses the same \$32,000 joint base and \$25,000 individual-status base for those earlier years, with the separate \$0-base married-filing-separately branch still distinguished. Worksheet 3 covers 1993 or earlier and has only the 50 percent calculation, not the later 85 percent tier.

Those are historical comparisons in the IRS worksheets, not annually inflation-adjusted thresholds. The higher inclusion tier applies to years after 1993; the publication's 2025 base amounts still match the earlier-year amounts.

A positive COLA can raise your combined income even without another withdrawal or an extra shift. With the thresholds unchanged, that increase can move your own calculation across a line. It will not do so for everyone; your starting income and the rest of your return matter. I would rather the thresholds had an inflation adjustment too. They don't acquire one just because the benefit does.

There is a newer wrinkle, and I am going to describe it carefully rather than confidently.

Public Law 119-21, enacted in 2025, changed federal taxes, credits and deductions; Publication 915 points to [the IRS legislation updates](#). The IRS's [individual provisions page](#) lists the official heading "Deduction for seniors (Section 70103)." A deduction can reduce taxable income without repealing the rules that include benefits in income. Publication 915 still prints the base amounts above for 2025 returns. Ask a preparer what the deduction does on your actual return rather than assuming that a headline abolished benefit taxation.

## **What the bank deposit leaves out**

Chapter 15's work-income test is separate from this broader combined-income tax calculation, which has no full-retirement-age exemption.

The income-related monthly adjustment amount, or IRMAA, is a Medicare premium adjustment rather than a tax on benefits; use [Medicare.gov's costs guidance](#) and your determination letter for that separate question.

For the benefit-tax worksheet, Publication 915 says not to reduce box 5 net benefits by Medicare premiums or the other deductions it lists. Box 5 is the number it wants. A year's bank deposits may be smaller, because money was deducted before it reached the account.

"Net benefits" on the form means box 3 benefits minus box 4 repayments. It does not mean what remained after Medicare and voluntary tax withholding. Use the form, not a total copied from twelve bank entries. If you receive multiple benefit statements, the publication tells you to combine the applicable box 5 amounts.

## **Withholding, and the form that does it**

You have a choice about how the money leaves.

You can pay the IRS directly through estimated payments, or request federal tax withholding from the monthly benefit. SSA's [withholding page](#), checked October 4, 2026, offers 7, 10, 12 or 22 percent, not a freely chosen percentage. Start, change or stop a request in your my Social Security account, or call 1-800-772-1213. Publication 915 also names Form W-4V, Voluntary Withholding Request.

Withholding is a payment toward tax, not the final calculation. Publication 915 says to report the amount in box 6 of the SSA-1099 as tax already withheld on your return. Reconcile it with your other payments and your actual tax liability there. Don't expect SSA to assess your whole return or automatically settle an overpayment of federal tax.

Ask a preparer whether benefit withholding, more withholding from another income source or estimated payments fits your year. Publication 915 directs readers to Publication 505 and Form 1040-ES instructions for payment requirements. December is a review point, not permission to postpone payments due earlier.

SSA's [tax-form page](#) states that the 2025 form was available online February 1, 2026. Check that page for the next year's availability rather than treating February 1 as a promise for every year. SSI payments aren't taxable; if SSI is your only SSA payment, the agency doesn't issue a tax form.

If the envelope never arrives, don't wait on it. That same page offers the form as a download inside your my Social Security account and says most people also get a mailed copy. There is an automated phone route open 24 hours a day: call 1-800-772-1213 and, at the "How can I help you today?" prompt, say "ten ninety-nine." If you live outside the United States and can't reach the form online, the page sends you to a Federal Benefits Unit instead.

## The widow's return

Chapter 14 left one question for this chapter, and it is a cruel one.

A couple filing jointly compares against a base amount of \$32,000. A surviving spouse filing as single, or as a qualifying surviving spouse, compares against \$25,000, according to the base amounts in Publication 915.

Your filing status and income may both change after a death. I cannot tell you from here whether that makes more or less of your benefits taxable. Nor should you assume the return for the year of death must be single: establish the correct status first. The qualifying-surviving-spouse conditions are in the Form 1040 instructions, which Publication 915 tells you to consult.

If you are reading after a death, take the prior joint return, current benefit statements and revised income figures to a preparer while you can still arrange payments for the year. You shouldn't have to guess at the filing status while also handling the rest of that household change.

## What to pay someone to look at

Publication 915 explains which worksheet to use, including cases needing additional calculations. Its free [Tax Counseling for the Elderly](#) referral is a place to ask about pensions and retirement-related tax issues.

I would ask a tax professional or enrolled agent for help in the first benefit year, when you have a partial year's checks but other income from the entire year. Separate married returns and the first return after a death deserve the same attention, because filing status affects the calculation. Don't make a filing or withdrawal decision from this chapter alone.

A retroactive benefit payment covering earlier years is another reason to bring the statements and those years' returns. Publication

915's lump-sum election may lower the taxable portion by using the earlier years' income. The taxable amount is still reported in the year you received the payment; the publication says not to amend earlier returns just to make this election. Chapter 17's Fairness Act discussion can send you back here without rebuilding the tax rules.

Ask SSA about an incorrect benefit statement. Ask the IRS or a qualified tax adviser about how that statement fits your return. This chapter addresses federal tax; check your state revenue agency's current instructions for any state return, rather than carrying these federal thresholds into it.

## **Your combined-income worksheet**

Use this as a screening sheet when benefits start, then revisit it when income changes and in early December. It helps you know what to take to the official worksheets. It isn't a completed tax return.

1. Write the tax year, expected filing status and the Publication 915 edition you checked. If married filing separately with any time living with your spouse during that year, mark the special \$0-base branch and take the figures to a preparer instead of using the general tiers.
2. Total box 5 from all applicable benefit statements, or estimate annual net benefits for an unfinished year. On a joint return, include your spouse's benefits too. Don't subtract Medicare premiums or tax withholding. If the total is zero or negative, stop this estimate and follow Publication 915's repayment instructions; don't halve it as ordinary positive income.
3. Divide the positive benefit total by two. Label it "half the benefits included on this return."
4. List other taxable income, using both spouses' amounts for a joint return even if only one receives benefits. Use the taxable

portion of pensions, annuities and retirement distributions, plus wages, net business income, taxable interest, dividends and other taxable income. For this quick screen, don't subtract deductions or the exclusions Worksheet A says to add back. If you aren't sure which portion is taxable, mark it unresolved.

5. Enter tax-exempt interest separately, including your spouse's on a joint return. Add it to step 3 and step 4's total. Label the result "Worksheet A screening total," not "tax owed."
6. Copy the applicable base from the tax-year publication. Under the verified 2025 rules, it is \$25,000 for the individual statuses described above and \$32,000 for a joint return. At or below that base, the quick screen shows no taxable benefits under its stated conditions. A missing income item means the screen isn't finished.
7. Above the base, complete the full worksheet the publication directs you to use, or have a preparer do it. It can account for adjustments the quick screen doesn't subtract. Under the 2025 rules, the ordinary tiers have inclusion ceilings of 50 percent and, above \$34,000 individual or \$44,000 joint, 85 percent. Record the worksheet's actual taxable-benefit amount, not just a ceiling. Special IRA-deduction or exclusion situations need the publication's specified route.
8. Keep unresolved items and any earlier-year lump-sum payment visible. Ask a preparer to compare a contemplated withdrawal or other income change against your whole return before you act. Crossing a line alone doesn't tell you whether that decision is bad.
9. Review tax already withheld from all income sources and any estimated payments. If benefit withholding is appropriate, choose one of SSA's four permitted rates; otherwise ask what payment arrangement is needed. Note the action date and

confirm the change. Don't choose the largest rate merely because it is available.

10. For next year's benefit estimate, check the published COLA at [ssa.gov/cola](http://ssa.gov/cola) and your personal notice when available. Keep that annual update separate from your tax calculation; Chapter 90 carries the claim-file figure checks.
11. Get the statement in hand before you start the arithmetic, using the account download or the automated phone route described earlier rather than waiting on the mail. Copy four figures onto this sheet in order: box 3 benefits paid, box 4 repayments, box 5 net benefits, box 6 federal tax withheld. Step 2 uses box 5 and step 9 uses box 6, so writing all four down once keeps a later question about a repayment from sending you back to the envelope. If you receive more than one statement, list each separately before combining.
12. Mark which agency owns each line before you pick up the phone. SSA can correct a wrong benefit statement, change your withholding percentage and tell you what it paid you. It will not tell you how much of that is taxable. Its own withholding page states the comparison in rounder terms than the tax-year publication does, and prints the \$25,000 and \$32,000 figures with no year attached to them, which is reason enough to take your base amount from the publication instead. Send the taxable-amount question to the IRS or a preparer, and keep a dated source beside every number on this sheet.

Keep this year's income sheet with the two notices. If the bank deposit and box 5 differ, you now know which number each question needs.

Set a reminder for the first week of December, and an earlier one if your income changes before then.

## **Chapter 17: The Rule That Finally Changed**

Dolores taught twenty years in Ohio before she and her husband moved to Pennsylvania, and for most of that first career she paid into the Ohio teacher retirement system instead of Social Security. Later, in Pennsylvania, she worked long enough in jobs that did pay into Social Security to qualify for a benefit of her own. It was a small check. She assumed it was supposed to be small, because someone at a retirement seminar twenty years earlier had told her so, and she never checked again.

In the spring of 2025 a deposit covering past months landed in her account, and a letter followed telling her the monthly check was going up too. She called me before she called her bank. “Is this real,” she said, “or did somebody finally get smart about a scam.”

It was real. It was the Windfall Elimination Provision going away, and it was two decades late for her, through no fault of the rule’s own timeline. I’ll take the two decades up to a point: nobody should assume an old rule still applies to them in this one case. Check your own record.

### **What WEP and GPO used to do**

Two separate provisions, two separate effects, both tied to the same cause: a pension earned in a job that never withheld Social Security tax. People call that “non-covered” employment. Teaching in many states, including Ohio, is the clearest example. Police and firefighter jobs in many municipalities are others. So are some federal jobs that

predate 1984 and certain other state and local positions, depending on the state.

The Windfall Elimination Provision applied to your own retirement or disability benefit, the one built on your own earnings record. For some workers with a pension from non-covered employment, WEP lowered the benefit calculated on their own covered earnings. It did not reduce every such worker's benefit; SSA's old formula exempted workers with 30 or more years of substantial covered earnings. If you don't know whether WEP ever reduced yours, check your SSA record before expecting an increase.

The Government Pension Offset applied to a different kind of benefit: a spousal or survivor benefit you were entitled to on someone else's record, not your own. If you drew a government pension from non-covered work, GPO reduced that spousal or survivor amount, and it could reduce it to zero. This is the one that hit people the hardest, because a lot of retired teachers, firefighters and police officers expected the surviving-spouse benefit from Chapter 14 to be there, and GPO could take most or all of it.

The GPO was created in 1977 and revised in 1983; WEP followed in the early 1980s. Both were written into law to address a specific calculation problem in Social Security's formula for people with mixed covered and non-covered earnings. Whether the fix was fair to any one household was argued for decades, in Congress and at kitchen tables like mine.

Both provisions sat on the books for roughly forty years, and plenty of households argued with them for the whole stretch.

## **What changed, in one sentence**

The Social Security Fairness Act, signed into law in January 2025, struck both provisions from the statute entirely.

Not reduced. Erased. Going forward, a non-covered pension no longer lowers your own retirement or disability benefit under the old WEP formula, and it no longer lowers a spousal or survivor benefit under the old GPO offset. The calculation runs the way it would for someone who never had a non-covered pension at all.

That is the whole rule. The complicated part is what “going forward” meant for people who were already affected, and that is where the agency’s own rollout page matters more than anything I can print here.

## **Two kinds of relief, and why the second needs a record check**

If WEP or GPO was reducing your benefit before the repeal, the law created two distinct results.

First, your ongoing monthly amount went up, recalculated without the WEP or GPO reduction.

For benefits payable January 2024 and later, the repeal removed the old WEP or GPO reduction. If SSA had already paid you a reduced benefit for covered months, it may have owed a retroactive payment for the difference while it updated your record. SSA’s Fairness Act page, last updated July 21, 2025, is the official place to check its current instructions and any case-specific exception.

That retroactive amount, if one is due you, is a one-time payment, separate from your new monthly amount. It is back pay for months already past, not an adjustment to future checks.

How many of those months apply to your household depends on your own record: when you were entitled, which provision reduced you, and what the agency already paid. That is a record question, and the answer sits in your file rather than in this book. If you call the agency’s general number, have your claim number ready and ask

specifically about your WEP or GPO recalculation, not just “my check.”

Dolores’s retroactive payment arrived separately from her new, higher monthly amount, and the back pay came first. That matches the sequence SSA described in its February 25, 2025 announcement: most people would get their one-time retroactive payment by the end of March 2025, and the higher monthly amount would first be reflected in the April payment. SSA said in that same announcement that complex cases which could not be handled by automation would take longer, so your own sequence may have run differently.

## **You may be affected even if you assumed you weren’t**

Here is the part I want you to sit with for a minute.

You do not have to be currently drawing a reduced benefit to be affected. You may be affected if:

You have a pension coming, or already draw one, from a non-covered job, even if you have not yet claimed either Social Security benefit.

You draw, or expect to draw, a non-covered pension yourself and are also entitled to a spousal or survivor benefit on someone else’s record. Read that twice, because people get it backwards: GPO cut your spousal or survivor payment because of your own non-covered pension, not your husband’s or wife’s. If the pension belongs to your spouse and not to you, GPO was never what shaped your spousal benefit, and the ordinary rules from Chapters 12 through 14 still govern it.

You assumed decades ago, correctly at the time, that WEP or GPO made a Social Security claim pointless for you, and never filed or never checked again. Dolores is the example. The rule that made her

check small for twenty years is gone, and the smallness that was once correct is not correct anymore.

You are approaching retirement now, have mixed covered and non-covered earnings on your record, and were planning around a WEP-reduced estimate you got from an old my Social Security printout or a benefits counselor's worksheet from before the repeal.

None of this requires a credential to check. It requires pulling up your own record and asking a direct question: does this still apply to me, given that the rule it was based on no longer exists.

## **What to actually do**

Start at the pension. If either of you draws a non-covered pension, or expects one, then that person is the one whose earnings record and whose spousal or survivor eligibility need a fresh look, dated after the repeal rather than before it.

If such a pension is in the picture and nobody has rechecked the record since the repeal, do it now, in this order:

Check your current benefit estimate online rather than trusting an old printed one. If you are not yet drawing benefits, that figure should no longer carry the old reduction; if you are drawing a reduced benefit and believe it was caused by either repealed provision, that is exactly the case the recalculation is meant to fix.

Read SSA's own update page, last updated July 21, 2025, start to finish, for who is affected, how the increase is figured, and how far back increased benefits may reach.

If your estimate or your payment still looks like it reflects the old reduction, call and ask specifically whether your case has been recalculated under the repeal. Note the date you called and who you spoke with.

If you have a non-covered pension of your own and you never filed for a spousal or survivor benefit on your husband's, wife's or

late spouse's record because you were told GPO would reduce it to zero, go back and ask again. Zero is not necessarily the answer anymore. If the non-covered pension belongs to your spouse instead, it is their record and their claim that need the recheck, and the call should come from them.

## **Choose the right route before you call**

The next step depends on whether you receive a benefit, never applied, or cannot identify the pension's coverage.

SSA's current [Pensions and work abroad won't reduce benefits](#) page says WEP and GPO no longer apply to benefits payable from January 2024. SSA will restore affected monthly amounts and repay amounts withheld since then; an unfiled claimant's benefit is not reduced by the old provisions. That does not mean every pension holder qualifies for a benefit.

### ***If you already receive a benefit***

Start with any SSA notice about the change and the benefit information in your my Social Security account, which also shows your Statement and earnings history. Keep those with any older award letter or estimate showing a WEP or GPO reduction. You need to identify the affected record, not reconstruct the old formula.

Write down the benefit involved, notice date, and whether it describes a new monthly amount, retroactive amount, or both. Name any spouse or survivor claim separately; a change to your retirement record may not answer that question. Ask SSA: "Was this benefit reduced under WEP or GPO? Has this record been adjusted for benefits payable from January 2024? Is a retroactive amount due, and which months does your calculation cover?"

If notice and account disagree, record the date and answer when you call. Ask what would resolve the difference; a mismatch merits

an explanation, not a conclusion that the law was misapplied.

### ***If you never applied***

An old estimate showing little or no payment after an offset is not a current eligibility decision. SSA says the old provisions no longer reduce benefits payable from January 2024, including for someone who has not applied. If you did not file because WEP or GPO seemed to make a claim pointless, ask SSA to assess the benefit now.

Keep eligibility separate from amount: “Do I meet the ordinary requirements?” and “Did the former offset affect this benefit?” Chapters 10-14 cover claiming rules. The repeal changes the offset, not eligibility; SSA decides what your record supports.

### ***If the pension’s coverage is unclear***

Do not decide from a job title alone; coverage can differ by employer and work period. Note the employer or public system, years worked, pension name, and whether the pension holder’s earnings history shows covered work. The account helps check earnings; the pension administrator can identify which employment supports the pension.

Bring those facts and any old SSA notice to the review. If work included both covered and non-covered jobs, say so rather than sorting the years into a formula. Keep documents available and follow SSA’s instructions about what to submit.

Before you contact the agency, make a short chronology for the person whose benefit may have been affected: when the non-covered job ended, when the pension began or is expected to begin, when the Social Security claim started, and which older estimate or notice showed the reduction. Keep the pension statement and earnings history nearby so you can answer a specific follow-up. SSA’s application guidance says to send supporting documents only when the agency asks for them; having a paper ready does not mean you

should mail it unsolicited. If the person never filed, mark that clearly instead of writing a guessed benefit amount in the margin. The representative can tell you whether an application, a record correction, or a review of an existing award is the right next step. Write down that instruction before ending the call.

Keep copies of answers with the notice, not just a number on scrap paper; later correspondence may use a different description for the same benefit record.

### ***If the person who received benefits has died***

For a possible amount due on a deceased beneficiary's record, SSA directs people to sign in and look for Form SSA-1724-F4, *Claim for Amounts Due in the Case of a Deceased Beneficiary*. It is distinct from the survivor-benefit application in Chapter 14. If both may apply, ask SSA which route fits each question.

Put the notice, account information, and pension facts on one sheet. Ask one record-specific question at a time; SSA can explain what it applied and what remains to be decided.

## **The tax question you'll have, and where it already lives**

A retroactive payment is income, and it can be a meaningfully sized check landing in one year instead of spread across the years it actually covers. Chapter 16 already gave you the tool for exactly this situation: the IRS's lump-sum election, which can let you figure the taxable portion using the income from the years the payment actually covers instead of piling all of it onto this year's return. I am not re-explaining the mechanics here. Pull Chapter 16's worksheet and its professional-referral section back out, bring your Fairness Act retroactive-payment notice to whoever does your return, and let

them run both ways before you assume the lump sum pushed you into a higher bracket than it actually did.

## **What this chapter does not cover**

This chapter is the only place in this book that touches WEP or GPO, and it stays narrow on purpose.

It does not cover how to apply for Social Security retirement, spousal or survivor benefits in the first place; Chapters 10 through 14 already did that, and nothing about the repeal changes those filing rules.

It does not cover how your pension itself is taxed, how your pension plan's own rules work, or whether you should take a lump sum or an annuity from that pension. That is a conversation for whoever administers your pension and, again, a tax professional for your own return.

It does not cover Medicare premiums, except for one narrow case. If your Medicare Part B premium was ever deducted directly from a Civil Service Retirement System annuity, or paid straight to the government because your check was too small or nonexistent under the old GPO reduction, a changed benefit amount can change how that premium gets paid. SSA's update page addresses that specific situation in its own section. *Medicare Made Plain* owns everything else about Medicare premiums and enrollment, and I am not reopening that book here.

## **A straight answer about what I don't know**

I don't know, sitting here, exactly how many months of retroactive payment your household is owed, how your own case stands by the time you read this, or whether a future law changes any of this again. Nobody writing a book in 2026 can promise you a 2027

implementation status, and I would not trust a book that claimed to know one for certain.

What I can tell you is that the rule Dolores spent twenty years believing in is gone, and the only way to find out if that matters to you is to go check, not to assume either way.

## **Could this affect me: a checklist**

Work through this with your own documents, not from memory.

1. Did you, personally, ever work in a job that did not withhold Social Security tax from your pay? Teaching, police, firefighting and some state, local or pre-1984 federal jobs are the common examples, but it depends on your specific employer and state, not the job title alone.
2. Do you, or will you, receive a pension based on that work?
3. If you answered yes to 2: could you also claim as a spouse or widow or widower on someone else's earnings record? Your own non-covered pension paired with that second claim is what GPO used to cut.
4. If you answered yes to 1 and 2: compare your current benefit estimate against any old estimate or statement you have from before 2025. Note the difference.
5. If you answered yes to 3: ask specifically about that spousal or survivor benefit, even if you were told years ago that you did not qualify or would qualify for nothing. If instead it is your spouse who holds the non-covered pension and you do not, run questions 1 through 3 again for them, on their record.
6. Reread the agency's Fairness Act page before you act on anything here, and note the date it carries at the top; the July 21, 2025 version is the one I worked from.

7. If anything still looks like the old reduction, call and ask for your case to be reviewed, and write down the date and the name of whoever you spoke with.
8. If you receive a retroactive payment, set it aside, don't spend against an assumed after-tax amount, and bring the notice to a tax preparer along with Chapter 16's worksheet before you file.

If nobody in your household answers yes to question 1, this chapter was not about you, and that's fine. Turn to Chapter 90 and get the rest of your figures confirmed for the year you'll actually file.

## Chapter 90: The Week You File

The application is open on the screen. Beside the laptop sits a folder: a birth certificate in a plastic sleeve, a marriage license, last year's W-2, a bank statement with the routing number highlighted in yellow.

Leave the folder shut.

That sentence surprises people, and it is the agency's own instruction, not mine. This chapter is the short list of things worth checking in the days before you file, and most of them are not documents at all. They are a date, a handful of figures that change every year, and an account you may already own and have never opened.

The week has two jobs. Fix the month you want the money to start, and confirm the figures that move every year before that month arrives.

### Send nothing until they ask

Social Security's [application page](#) says that when you apply, the agency reviews your record and checks the benefits you may be eligible for. If it needs documents or more information, it will contact you. Then it says the part people skip: to avoid delays, only send documents if asked.

I have watched the opposite instinct cost people weeks. The envelope goes out with certified copies of everything, unasked, addressed to an office that did not request it and has no claim pending to attach it to.

Keep the folder closed unless SSA asks for a document or more information through a request you can verify. If it does, send exactly what it requests and keep a copy and date.

None of which means your paperwork is irrelevant. It means the paperwork proves facts, and the facts are what you need at hand. An exact marriage date matters whether or not anyone asks to see the certificate. You will be far better served by knowing your dates cold than by mailing a shoebox.

## **The account is the file**

Everything else in this chapter assumes you can sign in at [ssa.gov/myaccount](https://ssa.gov/myaccount). If you have been meaning to set that up since the opening pages of this book, this is the week.

Inside it is your earnings record, and the earnings record is the whole calculation. Social Security's [review-your-earnings page](#) explains the plumbing: each year your employer reports what you earned so the agency can update your record, and if you work for yourself you report it directly. The same page gives a maintenance habit worth adopting whether you file this year or in six years. Check in August that last year's amount posted correctly.

August, because by then the prior year has had time to land. Not the week you file, when a missing year turns into a scramble.

If you cannot use the online service, that page points to Form SSA-7004, the paper request for your Statement, which you fill out and mail to the address printed on the form. Slower. Still better than guessing.

Use your account to check notices and claim status. For any notice, follow the delivery method and timing SSA shows for your account.

## Let me put it on the board

Three annual figures sit behind the chapters you just read, and all three live on one page: [ssa.gov/cola](https://ssa.gov/cola).

One. The cost-of-living percentage for the coming year.

Two. The two earnings limits that apply before full retirement age, which decide whether working costs you anything in the months before that birthday.

Three. The ceiling on how much of a year's wages the Social Security tax reaches, which matters to you only if you are still earning near it.

This book used the 2026 figures, labeled as 2026 every time they appear, because those were the published amounts when it was written. Chapter 16 explains why that page changes when it does, and I am not going to explain it twice. What I want from you is narrower: open the page in the week you file, find the year you will actually be paid in, and write those amounts down beside the book's.

If the page still shows the year that is ending, the honest note is the date you looked and the words "not yet posted." Then look again. A blank with a date on it is worth more than a number you talked yourself into.

One more page belongs in the same sitting if a pension from non-covered work figures in your household. Social Security's [Fairness Act update](#) carries a revision date at the top, and the version I worked from was dated July 21, 2025. The page also offers a subscription link, which is a reasonable thing to click if you are waiting on a recalculation. Chapter 17 covers what the repeal did; this is only the reminder to check whether the page has moved since I read it.

## Pick a month, not an age

The application does not ask how old you feel. It asks which month you want benefits to begin.

Social Security's [timing page](#) states the two mechanics plainly. You choose an enrollment month in the application, and your first payment arrives the month after the one you chose. You can apply up to four months before that month. The agency's [retirement-application FAQ](#), dated April 24, 2024, says the same four months.

So the decision you spent nine chapters making turns into one line on a form, and the line is a month and a year. Copy it from your worksheet rather than from memory.

The letter telling you whether you are approved runs on its own clock. The application page says that if you apply early, meaning two to four months before your chosen start month, expect that letter toward the end of the start month you picked. Apply closer in, and it typically comes within thirty days of applying. Either way you can check where your claim stands from the same account.

The day of the month your payment lands is a separate matter again, set by your birth date and the kind of benefit you receive. Your account shows the schedule. The agency's automated line will also read it to you if you call 1-800-772-1213 and say "check delivery" when it asks what you need.

## What to have at your elbow

Not documents. Facts, in a form you can read off without hunting.

Your bank's routing number and your account number, because payments go to an account. Social Security's [direct deposit page](#) handles changes through the account, and mentions a second route: your bank can transmit the information for you through a process called Automated Enrollment, though not every bank offers it, so ask

yours first. If you have no account at all, that page points to the FDIC's own guidance on opening one.

The month you chose, written as a month and a year.

Your own estimate at that month, taken from your record rather than from any table in this book.

If you expect to keep working, the figure you would actually bet on for this year's earnings, and for next year's. Chapter 15 explains what that figure does and does not cost you. Here it matters because the agency will ask for it and will hold you to it later.

If a marriage or a divorce bears on your claim, the exact dates. Chapter 13 explains how carefully those are counted. The application is not the place to discover you were off by two months.

And a way to reach a person, if you would rather not do this alone on a screen. The same application page lists the alternative. Call 1-800-772-1213 on a weekday between 8 a.m. and 7 p.m. Say you want an appointment to apply. They will book it and decide whether it happens by phone or in an office. The TTY line is 1-800-325-0778.

## **What you owe them after the first check**

Filing is not the end of the correspondence, and the obligations that follow are the kind people forget until an overpayment letter arrives.

Social Security's [reporting page for retirement beneficiaries](#) is short and worth reading once. If you said you would keep working when you applied, the agency sends you a form each year asking you to estimate your earnings. You are expected to speak up between those forms in two situations: when you expect to earn more than you estimated, and when you start working after telling them you would not.

The same page lists the personal changes to keep current. Your direct deposit account. Your contact information. Your citizenship or immigration status. Most of that you can do from the account; there

is also a written route through Form SSA-795, uploaded with a brief explanation of what changed and the date it changed.

Then there are the life events. The reminders printed alongside the annual cost-of-living notice ask you to tell the agency if you marry, if you divorce, or if a spouse or ex-spouse dies, and to say so if a child receiving benefits on your record stops living with you. Chapters 12 through 14 are the reason those events matter to the money. Report these changes promptly; do not assume a record match, another agency, or another person will update your claim correctly or soon enough. Some of those events can open a benefit you did not previously qualify for as easily as they can close one, which is why the notice points readers to the agency's own page on potential entitlement.

Report the change promptly using SSA's current instructions, and record the date and method you used. A correction made late is a correction made out of your next several checks.

## **Nobody from the government wants a gift card**

The cost-of-living page carries a warning I would rather repeat than leave out, because the weeks around a claim are exactly when people get targeted.

The agency states that its services are free, and that no government agency or reputable company will ask you for personal information or demand advance fees by wire transfer or gift card. It asks you not to hand over personal details, click strange links, or open attachments from senders you do not know.

Add my own rule to that. Do not give personal information or money to an unsolicited caller. End the call and use the number on SSA.gov or in your own account to verify any claimed SSA contact.

Suspected fraud goes to the Office of the Inspector General, through its reporting page or the hotline at 1-800-269-0271.

## Your claim-file checklist

Work through this in one sitting during the week you plan to file. Write the date beside every line you complete, because in three months you will want to know when you checked a thing, not just that you did.

1. Sign in to your my Social Security account, or create one. If sign-in fails, solve that before anything else on this list.
2. Read your earnings history line by line, not just the total. Note any year that is blank, low, or filed under a former name. Date checked: \_\_\_\_\_.
3. Open [ssa.gov/cola](https://ssa.gov/cola) and write down the cost-of-living percentage for the year you will be paid in. If the year you need is not posted yet, write “not yet posted” plus today’s date and set a reminder to look again.
4. From the same page, write both earnings limits for that year, unless you reached full retirement age before January. Those limits stop mattering once you are past it.
5. From the same page, note the wage ceiling the Social Security tax reaches. Skip this line unless your pay is close to that figure.
6. If anyone in the household has a pension from work that did not pay into Social Security, open the Fairness Act update page and write the revision date printed at the top. Compare it to July 21, 2025, the version this book used.
7. Write the month and year you want benefits to begin. One line. Copy it from your worksheet.
8. Count backward four months from that month and write the earliest date you may apply.
9. Write your own benefit estimate for that start month, taken from your record.

10. If you will be working, write your honest earnings estimate for this year and for next year.
11. Write the two banking figures from the section above. Confirm the account is open and in your name.
12. If a marriage or divorce bears on your claim, write both exact dates as they appear on the documents, not as you remember them.
13. Decide how you will file: online, or by calling 1-800-772-1213 for an appointment. Write the choice and, if you call, the appointment date and the name of whoever booked it.
14. After you file, write the date you applied and the date the decision letter is due by the timing rules above. If it has not arrived by then, check your claim status before you call.

Fourteen lines, one afternoon, and the folder on the table still has not been opened.

Keep the sheet. When the first payment lands and the amount is not quite what you expected, this page is how you will tell a rule you misread from a figure that changed on you.

Then open the account one more time and confirm the start month you chose is the start month on file. If the start month is wrong, contact SSA promptly and ask what correction options remain.

## What I Can't Put on the Board

Somewhere behind you in this book there is a page in your own handwriting. Three dates in a column, probably, with one of them circled harder than the other two.

Nothing has happened yet.

That isn't a scolding. It's the part people lose track of. A filled-in worksheet is a rehearsal, and a rehearsal costs nothing. The decision happens on a form, in a named month, and until you submit that form every figure you wrote down is still a draft you can tear up for free.

So let me spend the last pages on what changes the moment you stop rehearsing.

### The door closes slowly, and it does close

A claiming date is not quite irreversible. It is close enough to irreversible that I want you to treat it that way, and I'd rather hand you the two real exceptions than let you imagine a more generous one.

The first is withdrawal. Social Security's [page on cancelling an application](#) says you can cancel or withdraw your application up to 12 months after your benefit approval, that you can only do it once, and that you can reapply later. The form is Form SSA-521, the Request for Withdrawal of Application, which you can submit through your account or mail to your local office.

Read the price before you read that as a safety net. The same page says that if payments have already started, you have to repay the

money you and your family received, plus the money the agency withheld for Medicare premiums, taxes and garnishments. If Medicare Part A covered any medical expenses during that stretch, those get repaid to Medicare too.

So withdrawal is not an undo button. It is a reversal that requires you to produce, in one piece, money that has already been spent across however many months. Full repayment can be difficult once a household has used the checks for living expenses.

The second exception only opens at full retirement age. The agency's [page on suspending benefit payments](#) says that if you have reached full retirement age but are not yet 70, you can ask it to suspend your payments, and that you earn delayed retirement credits for each month they stay suspended. The suspension begins the month after you ask. If you never say another word about it, payments automatically restart the month you turn 70.

Two details on that page are worth more than the headline. You do not have to put the request in writing or sign it; the agency says you may ask orally or in writing. And suspension reaches further than your own deposit. If other people draw benefits on your record, they cannot be paid for the same months yours are suspended, with the narrow exception Chapter 13 covers. Any benefit you receive on somebody else's record stops too. Your Part B premiums can no longer come out of a payment that isn't arriving, so the Centers for Medicare and Medicaid Services bills you directly, and the agency warns that not paying those bills on time can cost you Part B coverage. If you also receive Supplemental Security Income, suspending retirement benefits makes you ineligible for it.

That is the whole set. A one-time withdrawal with full repayment inside the first year, and a suspension you can only start once you have reached full retirement age. Neither one is a plan. Both are repairs, and repairs cost more than getting the date right the first time.

If you are seriously weighing either, that is an hour of a fee-only planner's time and a call to the agency, in that order, before you sign anything.

## **The question nobody wants to do twice**

Back at the start I asked you two questions and admitted the second one was the one people walk around. I'll say plainly now which it was: what the survivor lives on.

It is the hardest arithmetic in this book because it isn't arithmetic. You are being asked to pick a number while imagining a specific person at a specific kitchen table without you in it. Everything in me wants to handle that later. Later is usually the week after it stops being hypothetical, and by then the claiming dates are set.

Here is the only instruction I'll give about it. Do it out loud, with the other person in the room, once. Not as a plan. As a sentence said aloud: if I go first, your check becomes roughly this, and if you go first, mine becomes roughly that. Chapter 14 tells you where those figures come from and which full retirement age governs them. Saying the two sentences takes four minutes. That conversation may change which claiming date the household chooses.

If one of you refuses to have that conversation, you have learned something useful about how the decision is going to go, and you should probably have it with a professional in the room.

## **What in here goes stale, and what doesn't**

I've been careful in this book to label the figures, and you should be careful about which parts of it you trust in three years.

Before filing, use Chapter 90 to confirm the current figures that apply to your claim.

What ages slowly is everything underneath. How a reduction is calculated against your full retirement age. Why a spousal amount is measured from the worker's full-retirement-age figure rather than from the deposit that actually lands. The difference between a benefit withheld and a benefit lost. Those structures sat still through the years I was reading about them, and they will probably outlast this edition.

Congress can change any of it. It did, recently, when the Social Security Fairness Act repealed two pension-offset rules that a lot of retired teachers and police officers had been told to accept as permanent. I'd keep that in mind the next time somebody tells you a rule is settled forever. Rules are only as settled as the last session that touched them.

## **The thing to do before you put this down**

Open your my Social Security account. If you never set one up when I asked in the opening pages, this is the moment the asking stops being polite.

Look at the actual estimate for the actual months you are considering. Not my illustrations. Not the figure a neighbor quoted at you with great confidence. Yours, calculated from the earnings record SSA uses for your estimate.

Then write down one month and one year on a piece of paper, and leave it somewhere you'll see it for a week. If it still looks right on the seventh day, treat it as your draft filing date. Before filing, run the checks that apply to your household and confirm any unresolved rule with SSA.

If it doesn't look right on the seventh day, that's useful too. Go back to whichever chapter made you uneasy and read it again with your own numbers in your hand instead of mine.

I taught long enough to know what happens when somebody hands a class the answer instead of the method. They pass the test and they cannot do it again in April. So I've given you the method, and the pages where the agency keeps the current numbers, and my honest opinion in the places where I have one.

The date is yours. Pick it on purpose.